

CIVIC EDUCATION

Grade 10

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The National Anthem of Sri Lanka

Sri Lanka Matha

Apa Sri Lanka Namō Namō Namō Namō Matha

Sundara siri barinee, surendi athi sobamana Lanka

Dhanya dhanaya neka mal palaturu piri jaya bhoomiya ramya

Apa hata sepa siri setha sadana jeewanaye matha

Piliganu mena apa bhakthi pooja Namō Namō Matha

Apa Sri Lanka Namō Namō Namō Namō Matha

Oba we apa vidya

Obamaya apa sathya

Oba we apa shakthi

Apa hada thula bhakthi

Oba apa aloke

Apaga anuprane

Oba apa jeevana we

Apa mukthiya oba we

Nava jeevana demine, nithina apa pubudukaran matha

Gnana veerya vadawamina regena yanu mana jaya bhoomi kara

Eka mavakage daru kela bevina

Yamu yamu vee nopama

Prema vada sema bheda durerada

Namō, Namō Matha

Apa Sri Lanka Namō Namō Namō Namō Matha

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- ආනන්ද සමරකෝන් -

ஒரு தாய் மக்கள் நாமாவோம்
ஒன்றே நாம் வாழும் இல்லம்
நன்றே உடலில் ஓடும்
ஒன்றே நம் குருதி நிறம்

அதனால் சகோதரர் நாமாவோம்
ஒன்றாய் வாழும் வளரும் நாம்
நன்றாய் இவ் இல்லினிலே
நலமே வாழ்தல் வேண்டுமன்றோ

யாவரும் அன்பு கருணையுடன்
ஒற்றுமை சிறக்க வாழ்ந்திடுதல்
பொன்னும் மணியும் முத்துமல்ல - அதுவே
யான்று மழியாச் செல்வமன்றோ.

ஆனந்த சமரக்கோன்
கவிதையின் பெயர்ப்பு.

Being innovative, changing with right knowledge
Be a light to the country as well as to the world.

Message from the Hon. Minister of Education

The past two decades have been significant in the world history due to changes that took place in technology. The present students face a lot of new challenges along with the rapid development of Information Technology, communication and other related fields. The manner of career opportunities are liable to change specifically in the near future. In such an environment, with a new technological and intellectual society, thousands of innovative career opportunities would be created. To win those challenges, it is the responsibility of Sri Lankan Government and myself, as the Minister of Education, to empower you all.

This book is a product of free education. Your aim must be to use this book properly and acquire the necessary knowledge out of it. The government in turn is able to provide free textbooks to you, as a result of the commitment and labour of your parents and elders.

Since we have understood that the education is crucial in deciding the future of a country, the government has taken steps to change curriculum to suit the rapid changes of the technological world. Hence, you have to dedicate yourselves to become productive citizens. I believe that the knowledge this book provides will suffice your aim.

It is your duty to give a proper value to the money spent by the government on your education. Also you should understand that education determines your future. Make sure that you reach the optimum social stratum through education.

I congratulate you to enjoy the benefits of free education and bloom as an honoured citizen who takes the name of Sri Lanka to the world.

Akila Viraj Kariyawasam
Minister of Education

Foreword

The educational objectives of the contemporary world are becoming more complex along with the economic, social, cultural and technological development. The learning and teaching process too is changing in relation to human experiences, technological differences, research and new indices. Therefore, it is required to produce the textbook by including subject related information according to the objectives in the syllabus in order to maintain the teaching process by organizing learning experiences that suit to the learner needs. The textbook is not merely a learning tool for the learner. It is a blessing that contributes to obtain a higher education along with a development of conduct and attitudes, to develop values and to obtain learning experiences.

The government in its realization of the concept of free education has offered you about 91 textbooks from grades 6-11. I would like to remind you that you should make the maximum use of these textbooks and protect them well. I sincerely hope that this textbook would assist you to obtain the expertise to become a virtuous citizen with a complete personality who would be a valuable asset to the country.

I would like to bestow my sincere thanks on the members of the editorial and writer boards as well as on the staff of the Educational Publications Department who have strived to offer this textbook to you.

W. M. Jayantha Wickramanayaka,
Commissioner General of Educational Publications,
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Battaramulla.
2019.04.10

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Democracy is accepted globally as a more desirable method of good governance. The main reason for this is that democratic government is based on people's participation and it represents public opinion. In this chapter, you will be able to study the system of democratic government relevant to the following topics:

- Origin and the expansion of democratic governance
- Characteristics of democratic governance
- Nature of the state and the government
- Nature of the national state, its origin and expansion
- Role of the state
- Nature of constitutions and their characteristics
- Organizational structure and the performance of the government
- Responsibilities of citizen
- Responsibilities towards citizen
- Requirements for the success of democratic governance
- Importance of democratic governance

Introduction to democratic governance

In the long history of civilization, man used to live together with a view of facilitating the fulfillment of his basic needs. With the gradual development of society, the need arose for an organized system of governance to facilitate the weal of society and safeguard law and order.

Accordingly, various countries have practised different methods of governance to rule them from the past. Monarchism (federal), aristocratic system and democratic governance can be cited as examples. At present, most countries including Sri Lanka are implementing democratic governance.

Democracy

In Sinhala, “praja” means people while “tantra” is the system of governance. “vadaya” is the ideology. Accordingly, democratic governance is the governance developed by the public to govern themselves.

If you consider the Tamil word ‘**Makkaladchi**’, ‘**Makkal**’, means people and ‘**adchi**’ means governance. In that sense, **Makkaladchi** simply means public governance.

The word ‘democracy’ is derived from the Greek words ‘Demos’ and ‘Kratos’. ‘Demos’ denotes public while ‘Kratos’ denotes power. So the Greek meaning of the word is power of the people. The system of government which allows people to participate in the administration directly and indirectly is democratic government.

The origin and the expansion of democratic governance

There is historical evidence to show that some features of democratic governance had existed in both the East and the West.

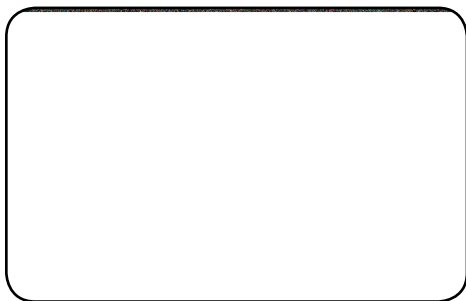


Fig 1.1 - Caryatides arena-Athens Greece



Fig 1.2 - Parthenon Accropolis Athens Greece

The governance of the Greek city-state (polis) of Athens was based on direct democratic principles. The supreme governing body of the city-state of Athens was the Citizen's Council that consisted of citizens in the government in Greece. The citizens' opinion on the functions of government have been directly considered in the Citizen's Council. Therefore, the citizens were given an opportunity to take an active part in the government. But urban women, slaves and foreigners were not allowed to participate in it. This method of governance in Athens was recognized as direct democratic governance. Collective decision making can be cited as direct democratic governance.

History records about a republican government in the “Vajji” kingdom of India in the sixth century B.C. The seven principles of “Aparihani Dhamma” of Vajji kingdom can be seen in the present democratic governance too. Some of them are given below.

- Regular meetings and discussion.
- Meet, discuss and leave peacefully.
- Avoid framing of non-functional laws, strict enforcement of framed laws, and obedience to framed laws.
- Respect elders, obey and respect their advice and abide by them.

Accordingly, this shows how the East followed the principles of democracy in their governments.

From 5th century A.D. up to the 15th century A.D. the feudal system existed in Europe. After the 15th century A.D. the advancement of commercial economy took place replacing the agricultural economy which was based on service bound land use. At the same time, a capitalist class also emerged. After the 15th century A.D. national states came into existence in Europe. With the spread of liberal ideas, the freedom of the individual was greatly appreciated.

The power of the people’s representatives took precedence over that of the monarchy. The English Revolution (Great Revolution) that took place in 1688 is an example of this. Later, the power of the Parliament which consisted of people’s representatives began to develop.

Types of democratic governance

When we inquire about democratic governance, two main types of it can be noticed.

- Direct democracy
- Indirect democracy (Representative Democracy)

Direct democracy

The governance which existed in the Greek city-state (polis) of Athens is a good example of direct democracy.

Direct democracy is the system in which people gather in one place, discuss and take collective decisions on state administrative functions with the consent of the people swiftly and directly.

- Professor Garner

The problems arising out of implementing direct democracy at present,

- The large land masses of present states
- Vast population of present states
- The difficulty of getting all the citizens to rally in one place
- Complexity of social needs

Indirect democracy

Considering the practical problems in implementing direct democratic governance, the system of elected representatives emerged. It is called indirect democracy or representative democracy.

Indirect democracy took root in Europe as an instrument of administration. Philosophic ideas nurtured it further. As a result, representative institutions such as the Parliament came into being.

“Democracy is, government of the people by the people and for the people”

- Abraham Lincoln -

“Democracy provides rights for everybody as a tool of governance”

- Sealer -

In a representative democracy, the citizens themselves cannot take part in the governance. The opinion of the voters is directly assessed in some countries where representative democracy is practised.

The referendum in the Constitution of the Democratic Socialist Republic of Sri Lanka, is one such example.

Importance of democracy as a system of governance

Most of the present states consist of multicultural societies. In such a society, every member of the population can become a partner in the mechanism of governance.

In most countries, government bodies have been established to enable people's representation at both national and local levels.

- Democracy is useful as a system of government, as it builds up on the people's will. The representative is elected on the majority will.
- The government is formed by the party or group which elects the majority of representatives.
- The laws are passed by the majority decision of the elected representatives.

The importance of democracy as a way of living

Democracy plays a major role in society and as a way of living. A democratic society respects different opinions, taking decisions by consensus, respecting equality while enjoying rights and fulfilling related duties.

A society which adheres to such conditions automatically creates opportunities for the smooth implementation of democracy.

Activities

- List the basic qualities of direct democracy which were followed in Athens, Greece.
- Taking the definition of representative democracy in the text into consideration, draft a simple definition.
- Prepare a note which contains the qualities that one should develop as a member of a democratic society.

Characteristics of democratic governance

Election of governments and rulers using universal franchise

In a democratic country, ruling representatives are elected by general franchise. Moreover, franchise is utilized in referendums in direct democracies.

Franchise is bestowed on all the citizens over a particular age limit. Voting power is granted irrespective of sex, community, employment or income. It is known as universal franchise.

In article 3 of the constitution of the Democratic Socialist Republic of Sri Lanka, it is mentioned that;

In the Republic of Sri Lanka sovereignty is in the people and is inalienable. Sovereignty includes the power of government, fundamental rights and the franchise.



Fig 1.3 - Polling center

Activity

Mention the elections in which the Sri Lankan voter is entitled to universal franchise.

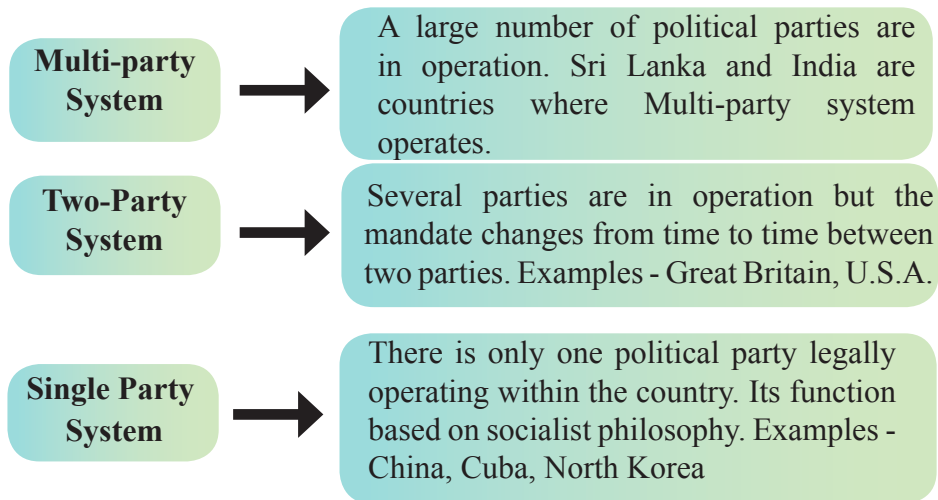
Competitive party system

Political parties are an essential component in the operation of democratic government.

A political party, is an organized entity of persons formed with the aim of acquiring ruling power of a country based on principles of its governance.

The opportunity given to a number of competitive parties to gain political power in a country is called competitive party system. It can be noticed that, they are in constant competition to acquire power presenting various political and economic programmes. Accordingly, the people can select their party on their own.

Different types of party systems can be identified in this manner;



Good characteristics of a competitive party system

- Wide opportunity for representing public opinion
- Prevention of autocracy
- Correction of the unhealthy policies of a government through criticism
- Provision of the opportunity to represent the diversity that exists in society
- Creation of unity out of diversity

Activity

- Explain the service rendered by the multi-party system in a democratic government.
- Name the several political parties active in the following countries.

Sri Lanka	India	Great Britain

Polling division system

It is necessary to divide the country into polling divisions as a strategy to involve people's representatives for democratic governance. Based on these divisions representatives are elected to the legislature and local governments. The simple majority representation and the system of proportional representation are followed mostly in electing members at present.

According to the constitution of the Democratic Socialist Republic of Sri Lanka, polling divisions are divided by the Delimitation Commission. For this purpose, the land and population are taken as the main criteria.

The electoral map of Sri Lanka is given below as an example.

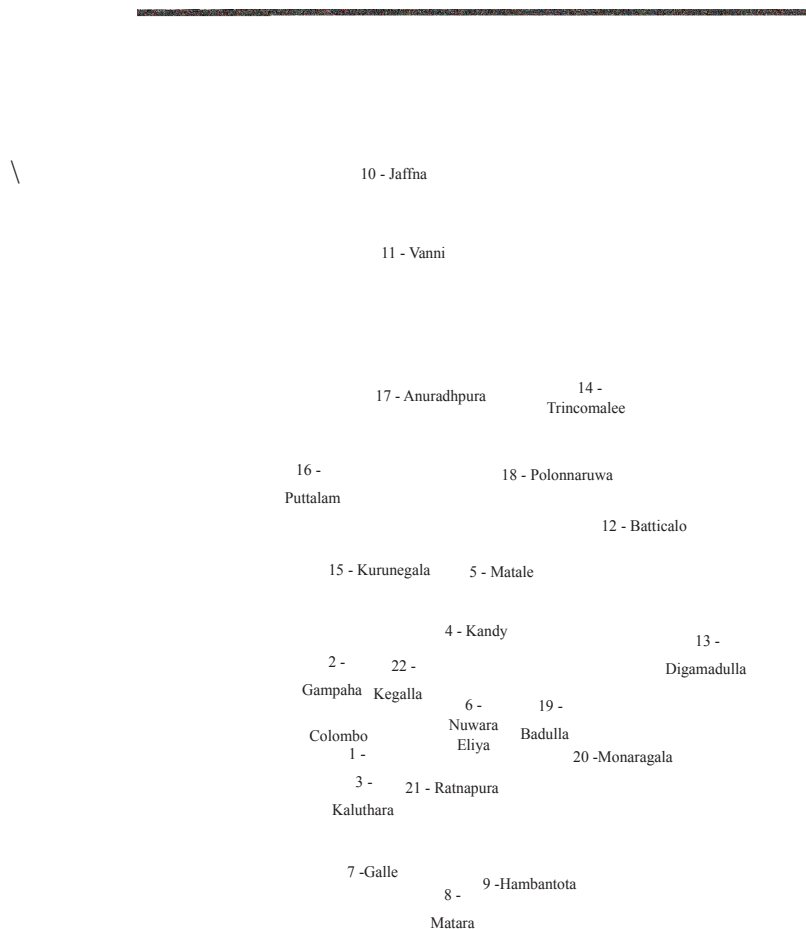


Fig 1.4 - The map of electoral districts in Sri Lanka

Benefits of electing representatives based on the polling divisions

- Opportunity for electing representatives to represent public opinion irrespective of differences that exist in the society like race, religion, language or caste.
- Provide the opportunity to elect leaders necessary to maintain the political process
- Provide opportunity for the people to elect a representative responsible for the division
- Providing an opportunity for regional development

Activity

- Name the electoral district of your residence.
- How many representatives are elected for the district?
- How many districts is Sri Lanka divided into?

Free and fair elections

Electing representatives to government bodies is a cornerstone in a democratic country. Similarly elections give the opportunity for the government to obtain the participation of the people in administrative functions.

Elections are essential for the existence of democracy and holding free and fair elections is also an essential factor. The voters must be able to choose a political party or a group and vote freely. Candidates too should be able to engage in the election process freely.

Characteristics of a free and fair election

- Holding elections in due course
- All the eligible citizens must be assured of their vote/candidacy in a free and fair manner
- Confirmation of the right to participate in a free and fair election.
- Holding elections in line with the election laws
- Holding elections in a peaceful environment.

Activity

- Three rights of a voter in a democratic country are given below in the first column. Mention three duties related to a free and fair election in the second column.

Column I	Column II
Rights of a voter	Duties related to the rights
1. Voting	
2. Participation in election propaganda meetings	
3. Addressing election rallies	

Existence of a government and an opposition

In an election for the selection of representatives for government bodies, the party which wins a majority of representatives becomes the government in a democratic system of government. Administration rests with the government. At an election, the party or parties which get a minority of representatives forms the opposition.

The role of the opposition to make the democratic system of administration successful

- Assist the government in their good activities.
- Direct the government in the proper path by way of investigation and constructive criticism
- Oppose the government in anti-democratic policies and actions
- Act to establish a better alternative government

Activity

Explain in brief how the opposition can assist the government to render better service to the people.

Freedom, equality and rights

In simple terms, the state in which an individual is allowed to fulfill political, economic and social needs can be defined as ‘freedom’.

In simple terms, freedom is the opportunity for developing one’s personality sans external resistance.

- G.D.H. Cole -

It is very important that this freedom is enjoyed so as to cause no hindrance or obstacle to the other members of society. Freedom can only be enjoyed within the boundaries of law.

The freedom that the individual gets to consummate his life, contributes in general to the progress of society as a whole.

Providing every individual with equal opportunities is equality. What is implied here is the provision of opportunities for the enjoyment of rights and freedom to everyone without any discrimination.

Execution of qualities such as freedom and equality depends on safeguarding rights. Rights can be interpreted as the entitlements of humans given by society to consummate his social life

Human rights can be defined as the entitlements unfavoured by any means which humans receive at birth to lead a prestigious life in society.

The Universal Declaration of Human Rights was proclaimed by the United Nations General Assembly on 10th December 1948. This is an important instance in the history of winning human rights. By this, human rights were legalized.

Entertaining the rights of a person properly results in leading a healthy social life. The intention of providing rights in a democratic society is to develop the whole society through personal development. Social development is established by performing duties combined with rights. Education is one example of the rights you are entitled to. It is your responsibility to dedicate knowledge and skills gained through education for social development.

Activities

Mention obligations a citizen should fulfil in column II for the rights in column I

column I	column II
Rights	Obligations attached to rights
Right to peaceful assembly	
Right to education	
Right to work and to receive equal wages for equal work	

- Mention moral obligations that you should fulfill to wards your parents and elders.

Act in accordance with the constitution

The basic law of a country is the constitution. Under a democratic system of administration, governance of the country takes place in conformity with the constitution.

The constitution is a document which defines the formation, the execution and the powers of the major component of a government, which are the legislature, executive and the judiciary and describes the relationship between the said institutions with the people.

- Professor Ivor Jennings -

Though there is no consensus about the contents of a constitution. But, most of the constitutions consist of the following;

- How the major components of the government, the legislature, executive and the judiciary are constructed
- The tasks, powers and the relationships in the said institutions
- The nature of the relationship between the government and the people
- Fundamental rights of the people
- Provision to amend the constitution

Benefits of adherence to the constitution in a democratic country

- Ensures the regularity and the consistency of the administration
- Awareness of people's rights by both rulers and subjects
- Possibility of preventing rulers being arbitrary
- Protection of the sovereignty of the judiciary
- Protection of fundamental rights
- Fulfillment of necessities and aspirations of the people from government institutions
- Equal treatment under law for every one

Media freedom and the right of access to information

The people of a democratic country have freedom of expression and access to information. This is fulfilled by the media. Media is the main factor in forming public opinion.

The people have a right to know about the activities and the decision making process of the government. It is an essential factor of good governance. Likewise the media has the ability to make the government aware of public opinion.

Media freedom is of paramount importance in a democratic country to form public opinion.

The role of the free media in a democratic country

- Presenting true and correct information to the public
- Presenting unbiased information for the benefit of the people
- Making the government aware of the grievances of the people
- Direct the rulers to follow the path of democracy
- Enhance the knowledge of the people
- Providing the latest information on time

Activity

Prepare a list of ethics for the media in providing day to day information to the public.

Independence of the judiciary

The judiciary plays the role of dispensing justice. In a democratic society the judiciary plays a major role in safeguarding freedom and protection of rights.

The judiciary should be independent and free from the influence of the legislature and the executive, and any other aspects. Constitutions of modern states have taken numerous steps to protect the sovereignty of the judiciary. Independence of the judiciary ensures that equity and justice is meted out to the people as well as judiciary.

Establishment of the Judicial Service Commission is one of the important steps with regards to independence of Judiciary.

The supremacy of law and equality before law

In a country, law is above all. It is the supremacy of the law. It is compulsory that both the rulers as well as subjects must obey and respect the law. They should not over rule the law. It should be practised equally for both the rulers and subjects.

The application of law irrespective of nationality, caste, creed, or sex or an individual basis is in brief called equality before law.

Features that illustrate the supremacy of law

- Everybody to respect the law, obedient to the law and not superseding it
- Punishing the offenders under the existing law
- Arresting individuals only on the basis of an indictment
- Equality before law.
- Everybody to get the protection of law in absolute fairness

Activity

Mention two provisions vested for the protection of the sovereignty of the judiciary in the constitution of Sri Lanka.

Nature of the state and the government

The State

While the state is a permanent institution, the government is an institution subject to changes from time to time. Present state is considered a national state, and there are four basic characteristics evident in such a state. They are land, population, government and autonomous power.

Land

- Land area is demarcated by fixed frontiers.
- The maritime boundary.
- The sky above the land area.

Population

- The population living within the land limits.

Government

- Safeguarding law and order and motivating people to fulfill common goals within the state are entrusted to the government.

Autonomous power

- Autonomous power is the authority that can be applied for the sake of the public without the intervention of any particular internal or external force. Autonomous power helps in enacting laws and in obtaining the allegiance of the public to such laws.

Definitions presented about the state

“ The state is a community of persons more or less numerous, permanently occupying a definite portion of territory, independent of external control and possessing an organized government to which the great body of inhabitants render habitual obedience ”

- Professor Garner -

“ The state is an organization established by the people to live happily and honourably ”

- Aristotle -

Nature of the nation state

The nation state was established in Europe as a political organization after the 15th century.

Main features of a nation state

- Based on the concept of one state for one nation
- Consists of supreme power, land, population and the government
- Governed by a professional hierarchy of authorities
- Possession of supreme power regarding external and internal matters

Origin and the expansion of the nation state

After the 15th century the formation of nation states commenced. England, Spain and France were the first nation states. Then Germany and Italy too joined. By the 20th century nation states existed all over the world.

Reasons behind the origin of nation states

- Protestant reformation
- The great revolution
- The rise of capitalist economy with the collapse of the feudal system
- Development of scientific knowledge

The required religious background was provided by protestant reformists. The political thinkers like Nicolo Machiaveli, Jin Bodan and Thomas Hobbs strengthened the nation state.

Countries like England, France, Holland and Portugal emerged as strong countries owing to several reasons. Some of them are,

- National cohesion
- Military and Naval strength
- Advanced economic condition
- Creative abilities of these nations

The role of the nation state

Modern nation states have emerged as big and small landmarks. Likewise, some have a large population while others have a small population. Taking the land areas and population into consideration, it is possible to imagine the complexity

of the social, political and economic problems. Economic inequalities and racial differences are some such examples. The nation state is bound to solve these problems safeguarding basic human rights, social justice and equality.

Accordingly, given below are examples of the tasks that devolve upon the Government.

- Protection of law and peace
- Maintaining economic and political stability
- Providing welfare services
- Taking steps for poverty alleviation
- Maintenance of public services
- Implementation of development plans
- Solving problems of war, rebellion and ethnic disputes
- Protecting basic human rights and their development

Activity

Prepare an article suitable for a wallpaper presenting examples of actions taken by Sri Lanka as a state, to alleviate poverty and provide social welfare services.

Main forms of states

As given in the constitution, the devolution of power between the central government and the local government bodies, the states are categorized as follows.

01. Unitary state
02. Federal state

Unitary state

Unitary states are states where power is concentrated with central governments to implement the legislative, executive, and the judicial power.

In a unitary state, local governments implement the administrative powers vested by the central government. (further details are given in chapter 2)

Federal state

A federal state is a system of government with two tiers of governments.

Here, both the central government and local government bodies exercise the powers of the legislature, executive and the judiciary. (A detailed clarification is given in the second chapter.)

Basic aspects of a federal state

- Devolution of power between the central government and the local government bodies.

Activity

Tabulate the main features of a unitary state and a federal state.

Government

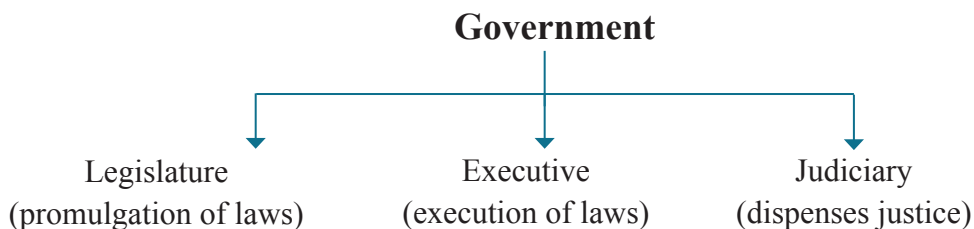
The government is the agent that implements expectations of the public and the will of the state. The government protects the law and peace and it leads the people to a common goal.

The government is the agent which converts the wish of the state or the people into policies and implements them.

- Professor Garner -

In a democratic country the government is elected to power through an election by majority vote. The government can be changed occasionally depending on the public opinion expressed at elections.

The government consists of the following institutions.



Activity

Differentiate between the state and the government.

Main components of the government and their functions

The government consists of the main institutions such as the legislature, executive and the judiciary.

Legislature

Representatives for the legislature are selected for a fixed term by universal franchise in an election. Tasks of this body are;

- Promulgation of laws
- Management of finance
- Control of the executive

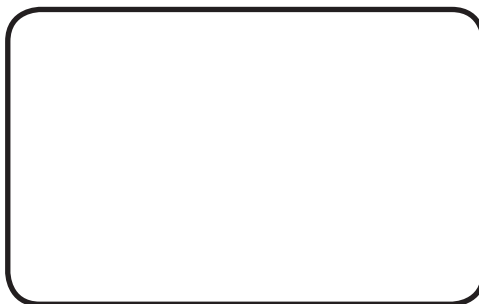


Fig 1.5 - Parliament of Sri Lanka

Executive

The executive is the implementing body of the laws promulgated by the legislature. The selection procedure of members depends on the nature of the constitution. In a parliamentary government, the executive consists of the Prime Minister and the cabinet. The political party which wins the majority of seats in a general election gets the opportunity to form the cabinet.

In a presidential government, the president is the head of the executive. the president is elected by a presidential election.

Judiciary

The judiciary sorts out the disputes arising out of the implementation of the laws enacted by the legislature. The main function of the judiciary is the dispensation of justice. The judiciary plays a major role in protecting the rights of citizens and safeguarding the constitution.

In federal states, the problems that crop up between the central and regional governments are solved by higher seats of the judiciary.

The procedures of appointing judges for higher courts are included in the constitution.

Activity

Tabulate the roles of the legislature, the executive and the judiciary.

Forms of government

In modern states two types of government are to be seen. They are;

- Parliamentary government
- Presidential government

Parliamentary government

A parliamentary government consists of a parliament with representatives elected by the people for a fixed term, a cabinet appointed by the parliament and an independent judiciary.

In a parliamentary government the executive is directly appointed by parliament from the elected representatives. As such the executive is directly responsible and answerable to parliament. Hence the parliamentary system of government is described as a government of responsibility. The Prime Minister and the cabinet are collectively accountable to the parliament. If it deviated from this process the legislature can defeat the government at any moment.

There are two types of parliamentary government: the nominal executive and the political executive. In Britain, the nominal executive is the king or the queen. It comes down as a tradition.

The political executive in a parliamentary system of government is the Prime Minister and the cabinet.

Features of a parliamentary system of government

- It consists of two types, i.e. the nominal executive and the real executive. (Political executive)
- The executive is elected by the legislature.
- A direct relationship exists between the executive and the legislature.
- The executive is collectively responsible to the legislature.
- The legislature has the power to remove the executive.

Activity

Establish a student parliament in your school and take steps to conduct proceedings. Get the assistance and guidance from your subject teacher.

Presidential system of government

In a presidential system of government, the president is elected by a presidential election. Thus, the head of the executive is the President.

Special features of the presidential system of government

- The President implements executive power.
- The President is the leader of the government and the state.
- The executive is not directly responsible to the legislature.
- The legislature does not control the executive directly.

The presidential government is the government which concentrates all the executive powers in the constitution sans the influences of the legislature on the president, who is independent and not accountable to the legislature for his political policies.

- Professor Garner -

Activity

- Tabulate the differences between the presidential and the parliamentary system of governments.
- Explain briefly the procedure for the selection of the president and the powers of the president under the 1978 constitution of Sri Lanka.

Responsibilities of the citizen

In a democratic society, the citizen can enjoy a series of civil, political, economical and cultural rights. While enjoying these rights, he has to fulfil duties to society. They are categorized as,

- Legal duties
- Moral duties

Payment of taxes, obedience to the existing law, safeguarding the constitution, protecting law and order are examples for legal duties. Failure to fulfil legal duties is a punishable offence.

Respecting elders, following social customs and traditions are examples of moral duties. The conscience of a person is the judge regarding the accomplishment of moral duties.

The individual should enjoy all the rights without harming the social welfare. A person has a right to engage in a profession. It is the responsibility of the individual to engage in it with dedication towards social development.

Study the articles mentioned below, of the constitution (1978) of Democratic Socialist Republic of Sri Lanka to learn about the duties of citizens.

The exercise and the enjoyment of rights and freedom are inseparable from the performance of duties and obligations and accordingly it is the duty of every person in Sri Lanka -

- (a) To uphold and defend the constitution and the law
- (b) To promote national welfare and to foster national unity
- (c) To work conscientiously in his chosen occupation
- (d) To protect public property and to combat misuse and waste
- (e) To respect the rights and freedom of others
- (f) To protect nature and conserve natural resources

Responsibilities towards the citizen

The state is also responsible in many ways towards the citizen. Most states have included these policies in the constitution itself. Therefore, the responsibilities of the governments towards people while carrying out administrative work are as follows;

- Protection of law and order
- Safeguarding the principles of equality
- Conforming to the constitution
- Protecting the fairness of the law
- Ensuring equal distribution of the national wealth
- Ensuring transparency in financial control
- Providing social security and welfare
- Protecting and safeguarding the environment

Activity

- Mention three rights you enjoy as a student and make a list of responsibilities you have to discharge related to the rights.
- Tabulate one's rights as a member of the family and one's duties.
- Make a list of duties you have to accomplish for the country as a future citizen.

Factors essential for the success of democratic governance

A series of factors are essential for the success of democratic governance. Some of them are stated below;

Free and fair elections

An opportunity was provided to learn the features of a free and fair election under the “ features of democratic governance ”.

The rulers are selected by the elections based on the universal franchise. The voter must be given the opportunity to cast his vote free of influence, according to his political opinion. It is a basic feature of a free election.

A fair election is one in which all the political groups are allowed to engage in election activities equally, in a suitable environment free from corruptions and malpractices.

Holding elections alone is not adequate for the existence of democracy; they should be free and fair.

Gaining power in a free and fair election is a requirement to obtain public support, confidence and acceptance towards the rulers. This is called the legitimacy of a government.

Existence of the supremacy of the law

The laws are the rules promulgated by the government to control the external behaviour of citizens. The obedience submission to the law and respecting those by both rulers and subjects should be done, without superseding the laws. The existence of the supremacy of the law is helpful for the government to maintain its affairs unobstructed and to establish public confidence.

Independence of the Judiciary

The judiciary is considered the main tower in building democracy. Maintenance of this institute without any influence is essential in democracy. The judiciary should exist impartially as an institute free of undue influence to dispense justice and fairness according to the existing law.

Fig 1.6

Then only justice could be dispensed to all the citizens of the country according to the existing law. Democratic governments set up provisions in the constitutions to protect the sovereignty of the judiciary. The existence of an independent and impartial judiciary is vital to setup a just and a law abiding society.

Existence of people with political intelligence

Bringing a people friendly government into power is of paramount importance for successful democratic governance. The voter is of prime importance in this process.

The political parties and groups present their policies to the people. The voters should be politically intelligent to vote correctly taking such policies into consideration.

Moreover, the voter must display concern to elect the candidates of exemplary character in society and great leaders devoted to build the nation. The intelligent voter must be concerned to prevent the selection of politicians who are guilty of offences in society. Thereby the voter is able to build good governance in the country. The existence of intelligent, politically educated public is very essential in building a peaceful political environment free of fraud and corruption.

Activity

- Make a list of matters a voter should pay attention to when deciding to cast his vote.

Existence of a sound economic standard

Fulfillment of fundamental rights to the highest standard is a key factor in strengthening democracy. The availability of food, clothing, housing, education, health and common amenities adequately is useful for the existence of a democratic society.

Existence of qualities like freedom, rights and equality depends on the sound economic level. To achieve these conditions, social welfare is also undertaken by a democratic government.

Availability of free and unbiased media

You will be able to learn the role played by the media under "the features of a democratic governance."

As the right to access information is an essential factor in a democracy, it is the task of the media to ensure it. Therefore, the existence of an environment conducive to the provision of information in a free and unbiased manner is essential for the success of democracy. Media has an obligation and a responsibility to provide unbiased and true information with a sense of responsibility. The media can build public opinion correctly by doing so.

Democratic life

Establishment of democratic principles in society is vital for the success of democratic governance. A democrat should have the following qualities.

- Taking decision through discussions
- Tolerance of opposite views
- Respecting majority decision
- Co-operation
- Respect for human rights
- Obedience to law
- Enjoying rights while fulfilling duties
- Identifying factors that hinder democracy and present constructive criticism.

Accordingly, the members of institutions like the family, school, higher educational institutes and places of employment must appreciate democratic principles in conducting their affairs.

Importance of democratic governance

Enjoyment of equal rights

Democracy is based on basic concepts such as personal freedom, rights, and equality. In a democracy, all citizens are entitled to equal rights irrespective of differences. No one is discriminated. There are provisions to establish a suitable

machinery to build such an environment in a democratic government. The existence of a constitution and acting in accordance with it in a democratic country is an example of this.

Possession of equal rights, building social integrity, reducing social conflicts help personal development. The opportunity to enjoy equal rights contributes to the development of the entire society.

Opportunity to develop personal abilities and skills

The citizens of a democratic country have the opportunity to develop their skills to the maximum. An individual has the opportunity to develop his intelligence, abilities and various skills. There are no limitations or obstacles imposed in this regard.

Not only opportunities provided to acquire education and vocational training but special identified skills are also improved.

Enjoyment of freedom and rights based on equality are of great help for the development of personal abilities and skills.

Opportunity for the citizens to take part in the government

A special feature of democratic governance is the political right of the people to take part in governance. Since they cannot take part directly, it is done through representatives. Hence, the rulers are elected by voters through universal franchise. The citizens have the opportunity to engage in election activities. One can present himself as a candidate. Moreover, by being vigilant of the activities of an elected government, a citizen can present his opinion.

Priority to human development

Food, housing, education, health, employment and other common amenities are factors which affect human development. These factors are instrumental in the qualitative development of the living conditions of the people.

In a working democracy, various political parties contest to gain power. In this contest, priority is mostly given to the party manifesto (policies) that bring people's welfare.

It is a special feature in democracy, to pay special attention in providing facilities. With the development of democracy the state has become a welfare institute in the last decades of the 20th century.

In some democratic countries, services such as education and health are provided free of charge. Sri Lanka is one such example.

Foundation for the development of a peaceful society

Most countries at present are multi- racial and multicultural societies. Every citizen is a partner of the administration in a democratic country. The following aspects have contributed to build a peaceful society

- Existence of the supremacy of law
- Independence of the judiciary
- Freedom, equality and possession of equal rights
- Respect for majority decisions
- Regard for minority opinion
- Come to decision through discussions
- Opportunity for peaceful expression of ideas of the citizen

Social welfare

The transition of the state into a welfare organization occurred with the advent of democracy in the early decades of the 20th century. As a result, special attention was paid to social activities which contributed to the quality of the standard of living of the citizens in a democratic government.

The government's role in the administration of the programmes on education, health, housing, transport, social security, poverty alleviation and caring for the aged are examples for this.



Fig 1.7 - Education

Activity

Give instances as examples for citizens of Sri Lanka to acquire the following rights.

Rights	Examples of opportunities
1. Possession of equal rights	e.g; Equality before law (1) ----- (2) -----
2. Development of personal capabilities and skills development	(1) ----- (2) -----
3. Participation in governance	(1) ----- (2) -----

As a student and a member of the family, write down in columns II and III respectively the opportunities you get to develop the qualities in column 1.

Column 1 Quality	Column 2 (As a school student)	Column 3 (As a member of the family)
1. Cooperation.		
2. Respect others' opinion		
3. Respect laws		
4. Taking decisions through discussion		

Introduction

The ability a state possesses to implement the administrative affairs of that state is, described in simple terms as power. While the final authority of power is the public and that power possessed by the public is described as sovereign power. The three areas: administrative power, voting power and basic rights, are included in this. There are several aspects of power. Political, administrative, social and economic are some of them. One way of defining the concept of power from the point of view of political science is the administration of power according to their wishes in order to control those subject to their power and should those being controlled fail to accept, ensure acceptance through the use of force.

This power which the state has, can be decentralized, or devolved. Accordingly, the present day states decentralize as well as devolve power. The power of a state is subject to decentralization as well as devolution based on the need of that state. If some state, for convenience of administration devolves only the administrative power upon regional administrative units, this is called decentralization of power. Similarly if some part of the threefold power involving legislative, executive and judiciary of the central government is devolved upon regional units of administration through the constitution, this is described as devolution of power.

By studying this lesson unit, you will be able to understand the concept of power, its different facets, decentralization and devolution of power, unitary and federal systems of government, and with our past experiences, we can understand how power is devolved in countries like the United States of America and Switzerland.

Power

The ability a state possesses to implement the administrative affairs of that state is, defined as power. While the final holder of power is people, that power owned by them is described as sovereign power. Administrative power, franchise and fundamental rights are included in this.

The manner in which sovereign power is implemented in Article 4 of the 1978 constitution is as follows,

The sovereignty of the people shall be exercised and engaged in the following manner.

- (a) The legislative power of the people shall be exercised by the parliament, consisting of elected representatives of the people and by the people at a referendum.
- (b) The executive power of the people, including the defence of Sri Lanka shall be exercised by the President of the Republic, elected by the people;
- (c) The judicial power of the people shall be exercised by parliament through courts, tribunals and institutions created and established, or recognized, by the constitution, or created and established by law, except with regard to matters related to the privileges, immunities and powers of parliament and of its members where as the judicial power of the people may be exercised by parliament according to law.

Types of the Power

The concept of power takes various forms. Political power, administrative power, social power, economic power etc., are some examples for it.

In accordance with the view point of political science, power has been described as “the ability to govern the subordinates as per the consent of the governors and the ability to obtain immunity by force when it is contrary to the consent.”

From the view point of economics, “the attempt taken to control others in an economy by a group of authorized persons” has been defined as power with the view point of economic science.

It has been described sociologically as “the ability to exceed persons of the society and existing social organizations” as power.

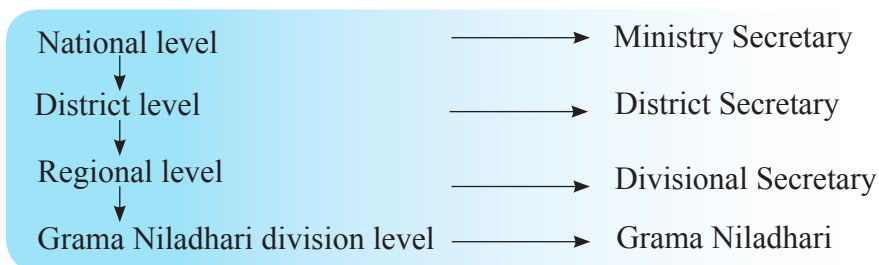
Decentralization of Power

Decentralization of power means the assignment of some of the powers vested in the Central Government, upon regional units of administration or otherwise, the devolution of the powers of the Central Government upon regional units in order to facilitate administrative functions and also to involve regional individuals in administrative activities.

One outstanding feature evident in the decentralization of power is that it is implemented through an Act passed by the legislature. Similarly, another feature is that such power can be re-vested in the central government at any moment. The best example, that can be given is the decentralization of power on Local Government Bodies in Sri Lanka.

Through the decentralization of power the responsibility of formulating plans, management, acquisition of resources and their distribution have been assigned to regional level administrative bodies, local government bodies, provincial governments, semi - independent public authorities and corporations.

Decentralization of powers of the central government can be implemented in various ways. Decentralizing the pattern of administration is one of them. It will be possible to understand how the administrative power from national level to regional level, is decentralized, from the examples below.



Assignment of the functions of central government to regional administrative units, is one aspect of decentralization of power. Under this, formation of the local authorities (Local Government Bodies): Municipal Councils, Urban Councils, Pradeshiya Sabha are examples.

Another aspect of decentralization of power is the assignment to regional units the powers that belong to state enterprises or state authorities. In this regard, necessary powers are vested in different departments, corporations and authorities to run state enterprises. e.g. State Petroleum Corporation, Sri Lanka Ports Authority.

Unitary State

What happens in the decentralization of power is the assignment of only administrative powers of the state to regional administrative units. In other words, legislative, executive and judicial powers are handled by a single center of power. A unitary state is a state where the legislative, executive and judicial powers are executed and controlled by a single central government. No devolution of power takes place in a Unitary State. Local government bodies can exist as some administrative powers of the central government have been decentralized in order to facilitate administrative functions. Local government bodies operating in Sri Lanka can be cited as an example. While the assignment of administrative powers to local government bodies are vested through an Act of Parliament, there is also the ability for the Central Government to withdraw such powers from local bodies, at any moment.

Professor Herman J. Finer, the eminent political scientist, points out that, “If all types of executive powers are concentrated on a single institution, this becomes a Unitary State.”

Characteristics of a Unitary State

- Exercising the Executive, Legislative and Judicial power by a single central government.
- Decentralization of only the above administrative powers to regional administrative units with the objective of facilitating the administrative functions of the central government.
- Decentralization of administrative power is only possible through an Act passed by the legislature of the Central Government.
- The ability to revert the administrative power that have been decentralized, at any instance the Central Government desires.

Devolution of Powers

The assignment of the executive, legislative and judicial power vested in the Central Government to local Government Bodies by an Act of Parliament is termed as devolution of power. This can be implemented only through the constitution.

If power is devolved newly or the vested power is revised by any means, the existing constitution should be amended.

Reasons for the devolution of power in Modern States

- Need for unity to be built up amidst diversity.

What this implies is to gather all the groups who speak different languages, follow different religions and belong to different ethnic groups under a common principle of nationhood to participate in the functions of government while respecting the identity of the respective groups.

- The difficulty of administration from a single central position because of the size of the state.
- Ensure national security.

Federal States

You have learnt that the assignment of the Legislative, Executive and Judicial power of the Central Government to regional units of administration is devolution of power. States that have implemented such devolution of power are called Federal States or in other words the states where Legislative, Executive and Judicial power of the Central Government is assigned to regional units of administration by the constitution itself are Federal States. Division of power between the Central Government and State Governments is a basic feature of the Federal System of government. Instead of a single center for power, two types of centers as central and state, can be seen in Federal States. Similarly, sometimes, the existence of two systems of law, such as laws of the Central Government and the laws of the State Government can be seen in a Federal State.

Federal States are formed due to various reasons and factors. One such factor is the union of several independent states and the creation of a Federal State to facilitate administrative functions.

Normally, Local Governments or Federal States are called states. Sometimes some other specific terms are in use to designate a federation.

eg - The Local Governments functioning in Switzerland are called Cantons.

Characteristics of a Federal State

- There is a written constitution.
- Demarcation of powers of federal states as well as Central Government clearly in the constitution.
- Assignment of power of interpretation to the constitution to a higher judiciary e.g. Federal jurisdiction of the United States of America.
- Establishment of an upper house of representatives (Senate) e.g. : Senate of the United States of America.

Characteristics of a federal state for its effective existence

- Affecting as per the existing constitution of the state.
- All ethnic groups to exist with common feeling.
- Providing financial resources to federal states in a fair manner.

New tendencies of federal states

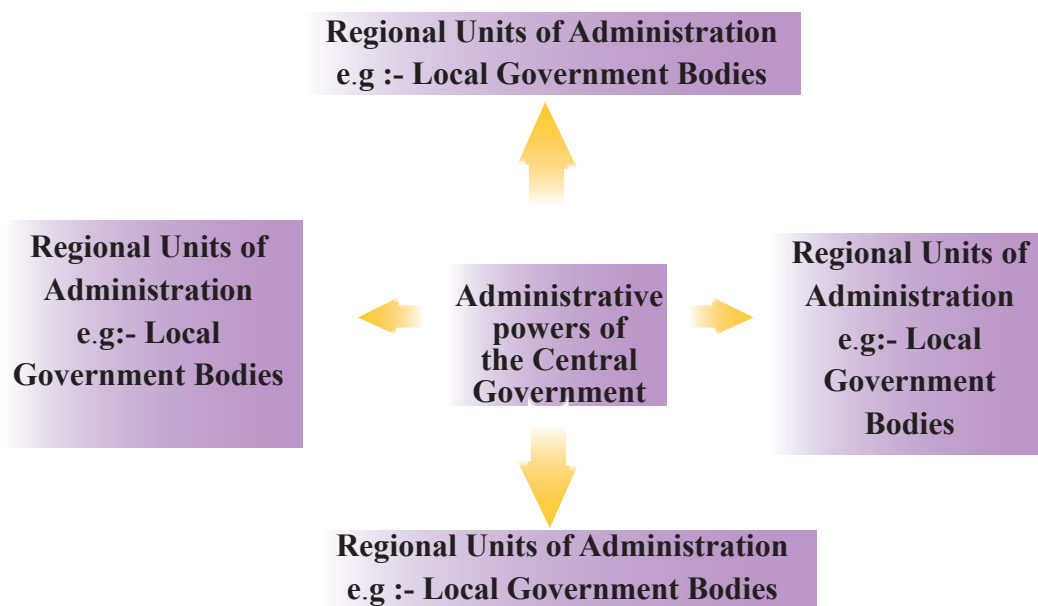
Federal states as well as the Central Government are treated equally in a federal system. Nevertheless the general tendency for the central government to become powerful could be seen when in operation. The central government has the ability to lead federal states. Some factors which have affected to create such a situation are as follows;

- Although the consent of federal states is obtained to amend the constitution of the government, neglecting the consent of federal states in making ordinary laws.
- In instances of interpretation of the constitution, it is done to the advantage of the Central Government.
- The Central Government has become the strongest in the implementation of financial deals between the Central Government and federal states. Federal states depend on the financial allocations made by the Central Government. These are provided subject to various conditions.
- As the welfare provided by the government increases, its responsibility is assigned to the Central Government.
- Co-ordination is accelerated as a result of modern developments in communication and transport services.

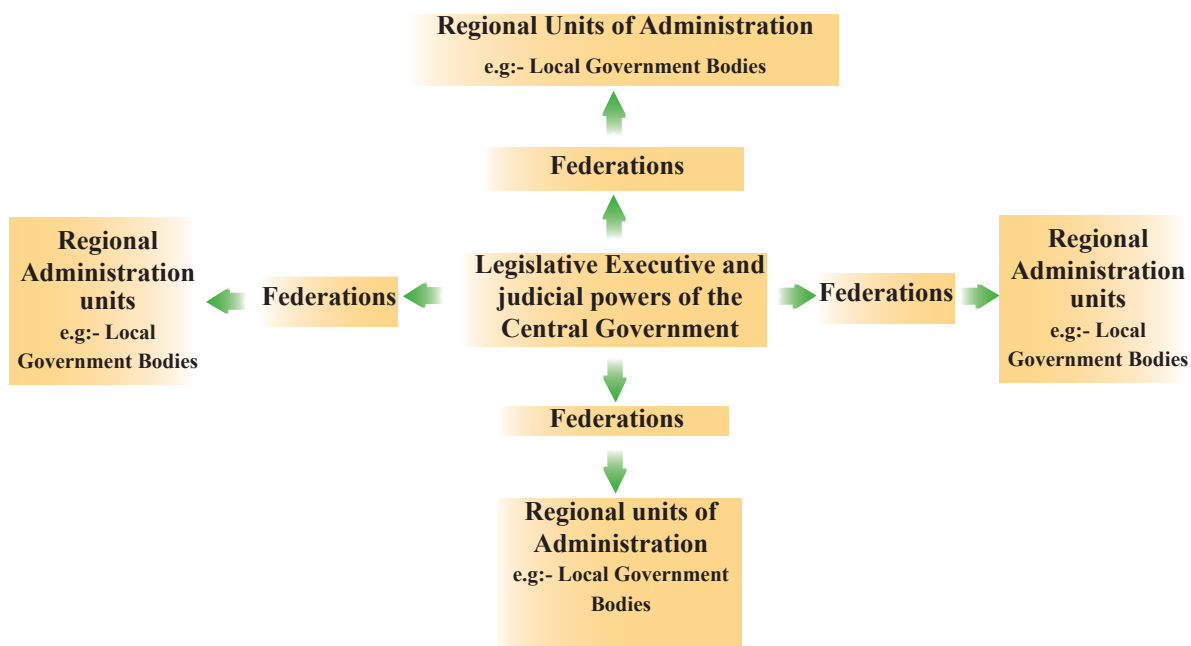
- Assigning the responsibility of taking economic decisions which affect the whole country in face of world economic crises, to the Central Government.
- Situation in the international field after the Second World War. e.g. Enhancement of power of the President of the United States of America.

For you to understand the difference between the two concepts of decentralization and devolution, study the diagram below;

Decentralization of power



Devolution of Power



According to the above diagram what has taken place in decentralization is, vesting only administrative powers of the Central Government to administrative units. It should be understood that the said Regional administrative units are not called prefectures or independent states. The Provincial Council system which is in operation now in our country is a fine example.

Decentralization means a split of the task of the Central Government, and federal states or independent administrative units will evolve thereby. Decentralization taken place where it is necessary to facilitate independent administrative units. Decentralization as well as devolution of power has been done in some federal states.

Activity

- Create simple definitions of ‘decentralization’ and ‘devolution’ based on the facts you have learnt.

Unitary Government

You have already studied what the concept of decentralisation of power means. We have identified the states which have decentralised power as unitary states. The governments which are in power in the unitary states are identified as unitary governments. Given below is a definitions of a unitary state.

"If the authorized power has been agglomerated in one central authorized institute however it is called a Unitary State"

- Professor Hermon J. Fainer -

The following governments are examples of unitary governments.

- Sri Lanka
- Great Britain
- France

Characteristics of a Unitary Government

You have learnt what a Unitary Government is. Two ideological views are expressed by two political scientists on several characteristics of a Unitary Government, appears below;

"One central authority vested with the power to enforce law is the basic feature of a Unitary Government."

- Prof. A.V. Dicey -

Supremacy of the Central Government and absence of extra sovereign bodies in the Government is the main feature of a Unitary Government.

-Prof. C.F. Strong -

Accordingly, features of a Unitary Government are stated as follows;

- Parliament, the legislature of the Central Government, is the highest law making authority.
- Decentralization of power to Local Government bodies to facilitate administrative functions. (e.g: Pradeshiya Sabha, Urban councils and Municipal Councils functioning at present in Sri Lanka)
- Concentration of Sovereign power of the state in one center (Central Government)
- Centralization of Legislative, Executive and Judicial power in the Central Government.

Advantages of a Unitary System of Government

- The ability of taking quick decisions easily by the government
- Inconsistencies between bodies which exercise power such as Central Government and State Governments are less due to the non-existence of such bodies.
- Government and the Judiciary are common to the whole state.

Federal Government

The governments which exist in federal states are called Federal Governments. The outstanding feature of a Federal Government is the division of power of government between the Central Government and the Local bodies.

Two definitions of eminent political scientists are given below.

"It is a government which paves the way for unity through diversity".

- A.V Dicey -

"Though it has independence to act within the power range, at times, the way is open for acting together on some aspects"

- Professor K.C. Wiere -

Examples of countries where Federal Governments exist :-

The United States of America, Switzerland, Australia

Salient features of a Federal Government

- Building a common nationality respecting ethnic diversity in a multi ethnic community.
- Facilitates administration in countries with a large land mass
- Facilitates prevention of a state becoming dictatorial as a result of the force and influence brought upon the Central Government by the regional government.
- Strengthening of the framework of democracy.

Unwholesome features of a Federal Government

- The dissatisfaction among the State Governments about the powers awarded under decentralisation.
- The tendency of states attempting to separate themselves from the Central Government.
- The collapse of administration as a result of inconsistencies in decision making between the Central Government and the State Government.
- Delay in the constitution - making process due to the existence of a second legislature.
- Scarcity of efficient officers resulting in failures in the administration of states.

Activity

- Prepare a list of differences between the unitary government and the federal government.

History of decentralization and devolution of power in Sri Lanka

History of decentralization of power in Sri Lanka

The concept of decentralization of power is not novel to Sri Lanka. When observing the systems of government that prevailed in the distant past of our country it is obvious that decentralization of power had taken place in different forms to facilitate the functioning of the government.

Examples

- Appointment of officials named “**Gambara**”, “**Gamani**” by King Pandukabaya during the Anuradhapura era to govern villages.
- Appointment of local government officials with administrative powers by King Parakramabahu during the Polonnaruwa era.
- Appointment of local government officials to maintain the governance unchanged with the migration of westerners.

e.g: Appointment of a “**Resident officer**” at provincial level by the British in 1815 A.D.

The manner in which power was decentralized in Sri Lanka during the British colonial era

The manner in which decentralization of power took place during the British rule can be identified by the Municipal Councils Act 1865 A.D. In 1865 AD and in 1866 AD Municipal Councils were established based on Colombo and Kandy cities respectively. British governance has immensely influenced the present situation in Sri Lanka where decentralization of power has been established.

Village Councils (Gam Sabha) were established in 1871 AD. An ordinance enacted in the same year assigned the Village Councils provisions to solve minor disputes arising in villages, to solve the problems related to agriculture and irrigation and provide health protection. An executive committee appointed for local governance under the Donoughmore Constitutional reforms in 1931 extended the powers of Village Councils (Gam Sabha). In addition, the establishment of Urban Councils in 1940, and the Local Government Ordinance passed in 1943 further decentralized power in the British colonial era.

Attempts to decentralize power after independence

The existence of local government bodies could be noticed even after gaining independence in 1948. The political authority system was established in 1973 to decentralize power. This attempt of the United Front government was to provide leadership for the enforcement of administration at district level. Subsequently, District Minister system in 1980 established the District Development Council abolishing the Village Councils and Town councils. Later, in 1981, Divisional Councils (Pradeshiya Mandala) and Village Councils (Gramodaya Mandala) started functioning and Pradeshiya Sabhas were created according to the Pradeshiya Sabha Act, No 15 of 1987.

Attempts to devolve power in Sri Lanka

Opinions on devolution of power had been presented in our country nearly a century ago. The proposal to establish a federal state in the upcountry regions forwarded by Mr. S.W.R.D. Bandaranaike in 1926 is prominent as an effort to devolve power. The Bandaranaike-Chelvanayakam Pact signed between Mr. S.W.R.D. Bandaranaike and Mr. S.J.V. Chelvanayakam in 1957 and Dudley-Chelvanayakam Pact in 1965 are examples of attempts to devolve power after independence. But the enforcement of these pacts was not possible in the desired manner.

In the recent past, in 1970's and 1980's, a tendency towards the process of power devolution is noticed. However, the then governments did not intervene directly and they were more inclined towards decentralization of power than devolution of power.

Establishment of Provincial Councils in Sri Lanka

Provincial Councils were established by the 13th amendment to the constitution of 1978 and the Act of Parliament No 42 of 1987 based on the 09 provinces prevailed. Chapter XVII A and Article 154A (1) of the 1978 constitution states thus

“Subject to the provisions of the constitution, a Provincial Council shall be established for every province specified in the eighth schedule with effect from such date or dates as the president may appoint by order published in the gazette. Different dates may be observed in respect of different provinces”

The 9 provinces which were established under the 13th Amendment to the constitution are as follows.

The nine provinces established according to 8th schedule of the constitution are given below

- | | |
|-------------|------------------|
| 1. Western | 6. North western |
| 2. Central | 7. North central |
| 3. Southern | 8. Uva |
| 4. Northern | 9. Sabaragamuwa |
| 5. Eastern | |



**Northern
Province**

**North Central
Province**

**North Western
Province**

**Eastern
Province**

**Central
Province**

**Western
Province**

**Uva
Province**

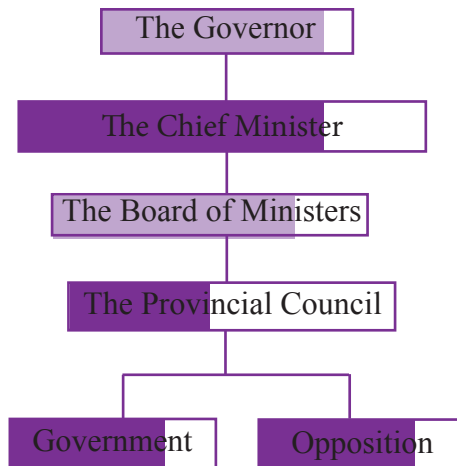
**Sabarakgamuwa
Province**

**Southern
Province**

The nine provinces of Sri Lanka

Organizational structure of a Provincial Council

A Provincial Council is organized into institutions such as Governor, the Chief Minister, the Board of Ministers and the members of the Provincial Council. The organizational structure can be illustrated by the diagram as shown below;



Thereby, an attempt is made to provide a brief knowledge about the institutions: the Governor, the Chief Minister, the Board of Ministers and the Provincial Council.

Governor of the Province

A Governor shall be there in each province and he is the delegate co-ordinator of the Central Government and the Provincial Council. The appointment of the Governor is done by the President and his tenure is 5 years. The Governor can resign before the end of his term. A Governor can be removed by addressing a proposal passed by a two-thirds majority of the Provincial Council to the President. Article 154 B (1) and (2) of the constitution (1978) states about the Governor, thus;

‘There shall be a Governor for each province for which a Provincial Council has been established in accordance with Article 154A’

The Governor shall be appointed by the President by warrant under his hand, and shall hold office, in accordance with Article 4 (b), during the pleasure of the President.

Powers and functions of Governor

- Summons the Provincial Council, prorogue and dissolves
- Addresses the Council and issues messages
- Appoints the Chief Minister, Board of Ministers, and other executive officials in the province
- Assents the statutes passed by the Provincial Council

- Performing according to the President's advice in emergencies
e.g. Failure of administrative machinery in the Provincial Council
Financial instability
- Coordinating between the Central Government and the Provincial Council
- Exercising Governor's functions on the advice of the Chief Minister as the nominal executive

Chief Minister and the board of ministers

It is mentioned in the 1978 Constitution that Provincial Councils should consist of a Chief Minister and a Board of Ministers selected from the members of the Provincial Council. The main function of this Board of Ministers is to assist the Governor in his functions and advise him. The Appointment of the Chief Minister is one of the functions of the Governor and the person to be appointed should possess the consent of the majority of members in the Provincial Council. The Governor should appoint the rest of the ministers on the advice of the Chief Minister. The Chief Minister and the Board of Ministers are collectively responsible and answerable to the Provincial Council.

Powers and functions of the Chief Minister and the Board of Ministers

- Render advice to the governor in the exercise of his functions
- Preparation of the provincial budget
- Drafting and executing economic development and administrative plans of the Province

The Provincial Council

You are already aware that Provincial Councils were established in the 09 provinces of Sri Lanka. (Article) 154 (2) of the constitution states that Provincial Councils will be constituted in each Provincial Council separately.

"Every Provincial Council established under paragraph (1) shall be constituted upon the election of the members of such council in accordance with the law relating to Provincial Council elections".

Article 154D (1) of the constitution states the content of the provincial legislature. Accordingly, taking the land area and the population of each province, the number of members is determined by the law.

The term of office of a Provincial Council lasts for five years. If it is not dissolved before the expiration of the said period, with the completion of five years, it is considered as dissolved. Members of the Provincial Council are elected only through Provincial Council elections.

The main function of the Provincial Council is to formulate and pass statutes on matters determined under the list of powers of Provincial Councils stated in the 9th schedule of the constitution. Similarly, passing the budget of the Provincial Council, making decisions relevant to the development of infrastructural facilities are implemented. The election of the Chief Minister and the Board of Ministers not more than four, from among the Provincial Council members is also executed by the legislature of each Provincial Council.

Powers and functions of Provincial Councils

Powers have been classified into three lists according to the 13th amendment to the 1978 Constitution.

- ❖ 1st List (Provincial Council list)
- ❖ 2nd List (Reserved list)
- ❖ 3rd List (Concurrent list)

Accordingly, functions and powers have been classified under three main fields: central government, provincial council and concurrent powers which both institutions can exercise. Next you can learn about the three lists and the powers assigned to each of them as laid down.

List I (Provincial Council List/ Powers of Provincial Councils)

The Provincial Council list contains the functions and powers of Provincial Councils. Functions and powers of 37 subjects that Provincial Councils are vested with, are denoted in this list.

e.g:-

- Planning – implementation of provincial economic plans
- Affairs related to local government
- Provincial housing and construction: implementing housing development programmes and projects
- Social services and rehabilitation
- Agricultural extension. Rehabilitation and maintenance of minor irrigation work

Provincial Councils can pass statutes on these subjects, but significantly, a Council cannot exercise any power in respect of any subject in the reserved list and it cannot pass any statute in this regard. It has no power to initiate an act.

List II (Reserved list/Powers of Central Government)

Powers relevant to 17 subjects exercised by the central government are denoted in List II or Reserved list. Subjects which are of great significance are included in this Reserved list and the Parliament is vested with the sole power to formulate law relevant to these subjects. Accordingly, several powers included in List II are given below.

- **Forming National policies on all subjects and functions**

The power to make policies regarding defence and national security, internal security, law and order.

- **Foreign affairs**

All matters related to the government of Sri Lanka with any foreign country; Diplomatic affairs; United Nations Organization; participation in international conferences, implementation of decisions taken there; entering into treaties and agreements with foreign countries and implementing treaties, war and peace; and foreign jurisdiction are covered under this.

- **Finance in relation to national revenue, monetary policy and external resources**
- **Justice in so far it relates to the judiciary and the structure of courts**
- **Immigration, Emigration and Citizenship**
- **Census and Statistics**

List III (Concurrent List)

Powers that can be equally exercised by both Central Government and Provincial Councils are classified under List III. It consists of 36 subjects. Some of them are given below:

- **Planning**

Formulating and appraisal of plan implementation strategies at the provincial level; progress control; Monitoring the progress of public and state sector investment programmes

- **National housing and construction**

The promotion of integrated planning and implementation of economic, social and physical development of urban development areas

- **Social services and rehabilitation**

Relief, rehabilitation and resettlement of displaced persons, relief for distress due to floods, droughts, epidemics or other exceptional causes and rehabilitation and resettlement of those affected

- **Agriculture and Agrarian Services**

Establishment and promotion of agro - linked industries, establishment and maintenance of farms and supervision of private nurseries; soil conservation

Local Government Bodies / Local Authorities

Local Authorities in Sri Lanka have been established with the objective of facilitating the administration of the Central Government and with the aim of providing an efficient service to the public. The possibility of fulfilling public needs through the participation of the public as well as the public representatives based on a certain land area taken place through Local Authorities. You have already studied about these Local Authorities and their functions in grade 09. Hence, you have the opportunity to study only their functions here. Local Authorities function in our country at present and the main posts of them are denoted below.

Municipal Council

→ Mayor/ Deputy Mayor

Urban Council

→ Chairman / Deputy Chairman

Pradeshiya Sabha

→ Chairman / Deputy Chairman

Powers and functions of Mayor/Chairman

- Acts as the executive officer of Municipal Council, Urban Council, Pradeshiya Sabha/Sabhai
- Summons, presides and postpones the council
- Formulates the budget and plans as well as obtains approval from the council
- Formulates and implements development plans relevant to their territorial limits
- Co - ordinates with Central Government and the Provincial Council
- Provides public utility services

Powers and functions of Deputy Mayor/Deputy Chairman

- Renders necessary assistance to the Mayor of the Municipal Council/Chairman of the Urban Council and the Pradeshiya sabha/Sabhai
- Proceeding with the functions of the council in the absence of the Mayor/Chairman

General Assembly

This can be regarded as the policy making body of the Local Authority. It consists of representatives elected by public in respect of areas of the local authority. The Mayor, Chairman, Deputy Mayor and Deputy Chairman are elected through this General Assembly. Formulating of policies and plans, passing the council's budget, assisting the Mayor/Chairman in the execution of administrative functions receive priority among the powers and functions of the General Assembly.

Structural differences in selected countries

Reason behind the formation of the United States of America as a federal government

The United States of America formed with 13 states initially, is a federal government with 50 states at present. The original 13 states were located around the Eastern coast of the United States of America.

These 13 states were independent administrative units prior to the formation of the federal government. But, later they were united as the United States with the objective of ensuring national security and achieving economic development. It resulted in the formation of a government named the United States of America which consisted of 13 states. There was also the need to build a strong nation to avoid the reoccurrence of the experience they had to face during the British colonial regime.

Laws related to devolution of power had been included in the constitution when the United States of America was formed in 1787. Accordingly, powers of the Central Government were included in the constitution while the State Governments were vested with the rest of the powers. The purpose was to strengthen the State Governments.

The Structure of the Government of the United States of America

- The executive President exercises the executive powers.
- The legislature consists of two houses: congress (house of representatives) and the senate (bicameral legislature)
- The president has to obtain the approval of the senate to exercise certain powers.

Example - Declaration of war, appointment of higher officers (ambassadors, judges of the higher courts and signing international treaties)

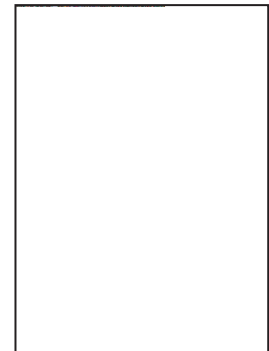


Fig 2.1 - USA The map of USA with the 13 states

- The Supreme Court is empowered to settle the disputes between the Central Government and the states over the execution of power.
- Appointment of two representatives to the senate to represent the interests of each state.
- Existence of a federal judiciary.
- If the acts approved by the congress are inconsistent with the constitution, the Supreme Court has the power to reject them.
- Requirements of 2/3 of the consent of the Central Government and 3/4 of the states for constitutional amendment.

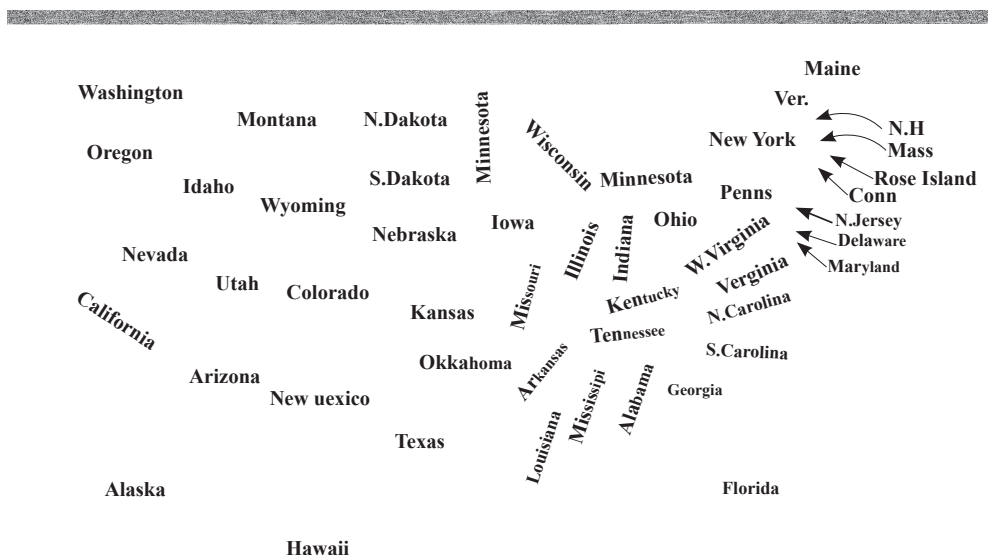


Fig 2.2 - The United States of America with 50 States at Present

Devolution of power according to the federal constitution of the United States of America

The constitution has vested all the powers except the powers given to the Central Government in the states. It is understood that the makers of the constitution have made an effort to build a system of federal states with more powers than the Central Government. The powers of the Central Government and the states are given below.

Powers of the Central Government	Powers of the states
- Imposition of taxes and collection - Financial affairs - National Security - Foreign affairs and foreign trade - Development of national economy	- Education - Health - Housing and construction - Local governance and highways

At present, there is a trend of the government succeeding in strength over the states in the U.S.A. There are many underlying reasons and some of them are mentioned below.

- The complexity of social, political and economic problems.
- The struggle for power in the international arena after the Second World War.
- The financial strengthening of the Central Government.

Establishment of the Swiss Confederation

Reasons behind the establishment of a federal state

- The threat to the national security being sandwiched between four countries: France, Italy, Germany and Austria.
- The difficulty to develop Switzerland economically due to its harsh geographical differences.
- Need to achieve successful solutions to ethnic, language and religious diversity.

The formation of the federal state of Switzerland took place as a result of the above reasons. Before the formation of a federal state, there was a number of small independent states in the country. As a result of the civil war between the Catholics and the Protestants in mid 19th century the federal state was formed and the war was called off.

Fig 2.3 -Political Map of Switzerland

Switzerland stretches to an area of 41300 square kilometers (km²) and it comprises of communities speaking languages such as German, French, Italian and Romansh and these languages are considered as the official languages.

The constitution of Switzerland was approved 150 years back. It has been amended occasionally and the new constitution was approved in 1999 for the last time. There are 26 provincial governments known as cantons in the federal system. It is a significant feature that freedom of a higher level has been awarded to them

Fig 2.4 - A landscape of Switzerland

Structure of the federal system in Switzerland

- The legislature is called the Federal Assembly and it consists of the national council and the council of states.
- A coordinated executive council of seven members is in operation and they are appointed by the federal assembly.
- The coordinated executive is called the federal board and the president leads but he has no supremacy over the others.

Powers of the central government

- Foreign affairs
- Declaration of war and peace
- Agreements with foreign countries
- Defence and military affairs
- Communication, post and telecommunications

Powers of the cantons

- Education and higher education
- Control of newspapers
- Highways
- Industries
- Immigration
- Prevention of infectious diseases
- Banking

Special features of the federal system in Switzerland

- The powers of the Central Government and the cantons are defined and the rest is vested with the Central Government.
- If a problem occurred in the execution of power, the federal assembly has the power to settle it.
- Cantons cannot execute their power and work independently.
- The use of direct democratic strategies to inquire public opinion in decision-making by the cantons.

Introduction

The present day society is extremely complex. Economic, social, political and cultural factors have contributed to this complexity. Apart from these, geographical factors, migrations and invasions have also influenced this tendency. Hence, modern society is comprised of differences like diverse ethnic groups, languages, religions, beliefs, customs and manners. Social systems with such diversity are termed plural societies by sociologists. The different ethnic groups living in such plural societies practise customs, manners, languages, religions, beliefs, aspirations, traditions etc., unique to them in order to safeguard their identity. Owing to this, the culture of even a single country can be diverse. Societies that comprise such cultures are called "Multicultural Societies". This unit anticipates provision of a correct understanding regarding multicultural societies and the creation of a generation of citizens endowed with the competencies necessary to contribute to the building of the atmosphere essential for peaceful co-existence in such a society.

The Multicultural Society

Various sociologists and philosophers have put forward definitions to explain what "Culture" means. Given below are a few of them;

Culture is the knowledge, beliefs, arts, habits, values and the behaviours, pro-activities and abilities acquired by man as an individual living in society.

T.B. Tyler

Culture is the collective name that can be given to all behaviour patterns required socially, by means of symbols or inheritance.

Charles A. Elwood

Culture means the socially as well as traditionally accepted forms of implementation of beliefs, styles of thought, applied arts, life styles, customs and manners.

E.T. Healar

From the above definitions, it is evident that all our activities and thoughts and desires belong to the category of culture. All of us have got habituated to an accepted life style within society. This habituation or moulding is also culture. As an individual, each of us from birth to death behave according to the culture we have inherited. All the features that manipulate the forces evident in society belong to culture. Some of them are given below;

- Religion
- Language
- Knowledge
- Clothes
- Food and Drink
- Arts
- Rules and regulations
- Faiths
- Customs
- Ethics
- Values
- Family background
- Economic background
- Beliefs
- Equipment used
- Friends associated with
- Education
- Politics
- Technology
- Habitat
- Infrastructure

In every society an important function or role is performed by culture for the existence of that society. Culture continues to change and develops within society, with the time.

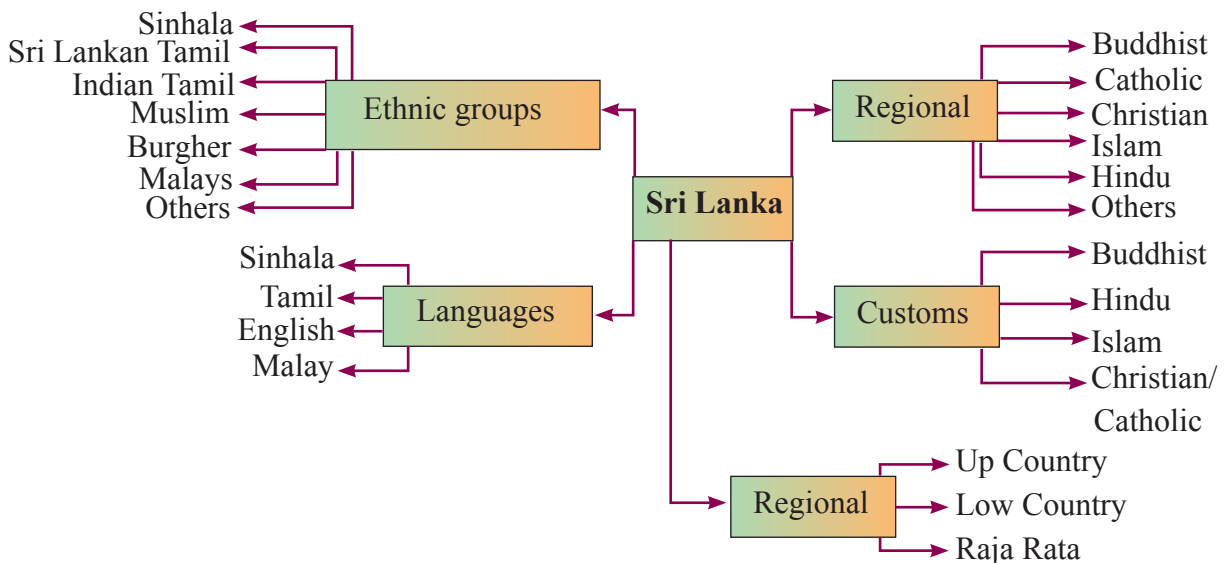
Culture varies in terms of society in which the individual lives. As a result, in different societies, a culture that is unique to that society develops.

Activity

- Observe well the process from the beginning to the end at a particular festive occasion you participated in. Note, step by step the cultural features evoked in it.
- e.g - The occasion of a wedding or a funeral.

Basic features of a multicultural society

1. Coexistence of different ethnic groups, different religious beliefs, individuals speaking different languages.
2. The existence of a system and manners, ethics and values unique to each culture on account of the diversity above.
3. Visibility of regional diversity even in each social group.
4. The attempt made by groups of people belonging to each culture to congregate forming multi-cultural societies.
5. Due to globalization, advancement of communication technology and tourism the world has become a global village accelerating the cultural integrity.



Activity

Write examples of different customs and traditions related to different religions and ethnic groups.

- Buddhist
- Hindu
- Muslim
- Christian

(for this, make use of the material you studied in Grades 6,7,8 and 9)

People speaking different languages, practising different religions and following different customs co-exist in a multicultural society. Multicultural societies can be identified in most countries today. Our country, Sri Lanka, is a good example of a multicultural society though not much complex. Countries such as, India and the United States of America can be cited as multicultural countries with complexity.

- Population of Sri Lanka according to ethnicity

Ethnic group	Population	Percentage
Sinhala	15,250,081	74.9%
Sri Lankan Tamil	2,269,266	11.2%
Sri Lankan Moor	1,892,638	9.3%
Indian Tamil	839,504	4.1%
Burgher	38,293	0.2%
Other	106,836	0.3%

Table No. 3.1

Source - Population Census 2012

Department of Population and Statistics

Activity

- Examine the multicultural features of a country like India or U.S.A and prepare an article to be published on a wall paper.

- Population of Sri Lanka according to Religion

Religion	Population	Percentage
Buddhist	14,272,056	70%
Hindu	2,561,299	12.6
Islam	1,967,523	9.7
Christian	1,552,161	7.6

Table No. 3.2

Source - Population Census 2012

Department of Population and Statistics

Although the composition of the ethnic groups and religions is as above, ethnic groups following different religions can be seen.

e.g :- Sinhala - Buddhist, Catholic/Christian
Tamil - Hindu, Buddhist, Christian/Catholic

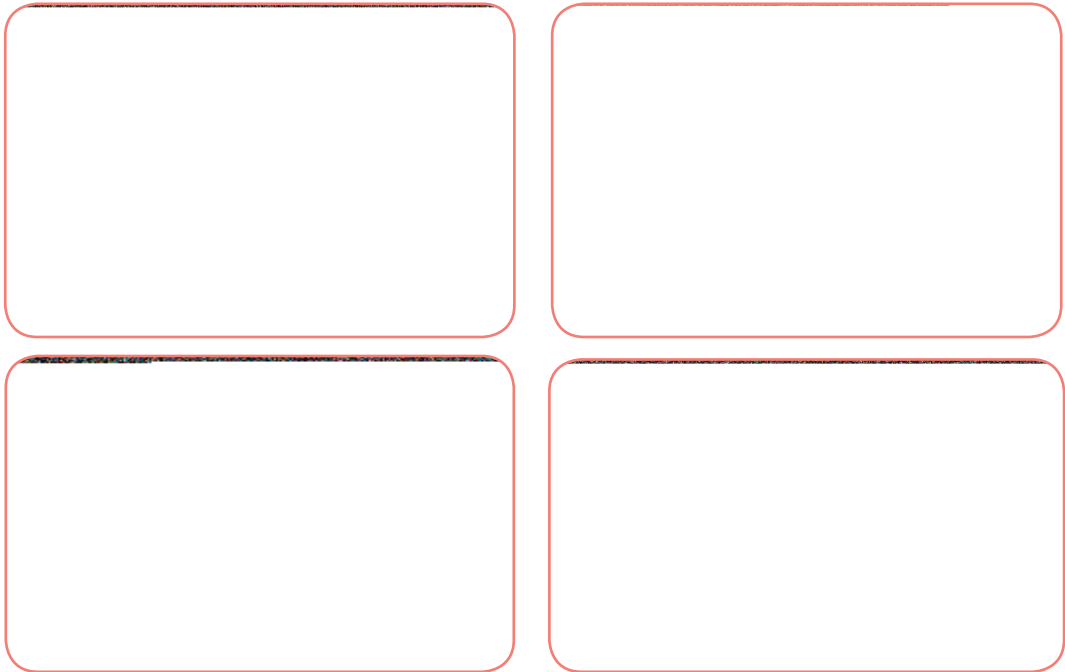


Fig 3.1 - Some religious places of Sri Lanka

Even though people are classified according to ethnicity as Sinhala, Tamil and Muslims, Sinhala speaking Tamils or Muslims and Tamil speaking Sinhalese living in co - existence in the country is noteworthy.

Factors that influenced Sri Lanka for the existence of a multicultural society

Location

- Geographical location
- Centralized location in the Indian Ocean
- Located close to India
- Located as an East - West trade centre

Migrations

- Arrival of Vijaya and his retinue
- Arrival of a princess and her retinue for the coronation of Vijaya
- Arrival of Panduwasdeva and retinue
- Arrival of Bhadda Kachchana and retinue
- Arrival of Arahath Mihindu and retinue
- Arrival of Therini Sangamitta and retinue
- Migration that takes place at present for various reasons like tourism, employment, education etc.

Invasion

- The Sena - Guttika invasion
- The invasion by Pandu - Parinda and retinue
- The Kalinga Magha invasion
- Invasion by Western European nations

Arrival of Various nationalities for trade

- Arabs
- Indians
- Chinese
- European

Import of labourers

During the time of British administration in Sri Lanka, due to import of labourers from South India for cash crop cultivation the heritage and identity of those people has caused cultural diversity.

Emergence of a multicultural society and the necessity of good governance

Introduction of good governance

Good Governance can be defined as a concept that emerged consequent to the factors that influenced the collapse of social justice as well as the lethargy in the economic development of certain countries where there was no lack of either economic or human resources.

Given below are some of the reasons as to why economic development has become lethargic as a result of the failure of the economic and human resources of these countries to be properly managed.

- Power becoming unnecessarily centralized
- Inefficiency of governance
- Politicization of public services
- Bureaucratic control
- Absence of public participation in deciding on state policy and its implementation
- Escalation of bribery and corruption
- State administrators becoming irresponsible.
- Negligence of national goals by the private sector

While emphasizing the necessity of alleviating the above weaknesses faced by most countries, the concept of good governance is one possible solution put forward in that regard.

Good Governance is a process of deciding on government policies and implementing them. The responsibility of those who govern is to be accountable for the well-being of citizens to the maximum, protecting civil rights and social justice by being law abiding and having transparency without corruption and malpractices

Basic Qualities of Good Governance

1. State control and administration free of corruption and fraud
2. Confirmation of freedom and equity
3. Respecting the supremacy of law and safeguarding the independence of the judiciary
4. Individuals responsible for the implementation of state control being accountable to the public
5. Safeguarding and confirming rights
6. Safeguarding media freedom
7. Making use of resources efficiently and productively
8. Acting with transparency
9. Preparation of the background for political socialization
10. Safeguarding and securing constitutionality

Importance of respecting political, socio-economic and cultural identity of each other for good governance

For good governance, respecting political, socio-economic and cultural identity of each other is an essential requirement. It is essential to confirm the above qualities in society for this purpose.

Furthermore, paying attention to the following requirements is important.

Political

- Respecting the political identity of each other
- Following any political ideology of one's choice
- Respecting political leadership
- Acting independently when taking political decisions and conclusions
- Ensure that such decisions are not obstructive to others
- Conducting free and fair elections

Economic

- Involving in a legitimate employment or trade of one's choice
- Organization and implementation of trade unions
- Taking steps for the minimization of discrepancies in the distribution of income
- Development of infrastructural facilities

Social and Cultural

- Adherence to a religion of one's choice
- Following customs and manners
- Holding various celebrations
- Residing in a region of one's choice
- Learning and using different languages
- Travelling freely
- Respecting cultures of others

Acting with respect for political, socio-economic and cultural identity with respect to the above is essential for the well-being of a multicultural society.

Implementation of Good Governance in a multicultural society

- confirms mutual trust among ethnic groups
- broaden understanding between each other
- develops participation of all ethnic groups for administrative purposes
- learns to respect each other
- acts irrespective of religious and cultural diversity
- learns to live as law-abiding citizens
- acts promoting transparency

Multicultural Society and the Modern States

The modern idea of a national government is one Government for a single nation. This implies that a state is one nation. Even though people who belong to different cultures live in a country, they are considered as a single nation.

For example, although Sinhalese, Tamils, Muslims and other races as well as people of different cultures live in Sri Lanka, they have to be treated as Sri Lankans.

Modern states where democratic governance is implemented endeavour to integrate diversities and march towards development independently while respecting the diverse cultural identities.

Most of the developed countries have immensely made use of multiculturalism in their economic, social and political process. Their theme is "Unity in Diversity." Countries like Singapore and Switzerland can be cited as examples.

Activity

- Write an essay in no less than 250 words on the topic "Let us implement multicultural sociality for the well - being of the country " Display the best compositions in the classroom.

Characteristics a citizen should inculcate for the well-being of a Multicultural Society

- Understanding and identifying cultures of one another, acting consciously and respecting each other
- Avoiding insulting other religions
- Respecting other cultures
- Acting so as to avoid conflicts
- Developing mutuality
- Understanding that acting in co-operation facilitates achievement of victory
- Learning and using the language of other ethnic groups
- Implementation of multi - religious programs
- Respecting and tolerating of other's views
- Equality

Importance of living in unity as members of a Multicultural Society

When the people of a multicultural society act cohesively,

- national unity and co-existence develop
- conflicts are minimized
- mutual goodwill and trust develop
- feeling of one nation, one country develops
- human freedom and democracy is assured
- every citizen is motivated to act with determination, for the development of the country as a national duty
- other religions or cultures are not disgraced

Achievement of victory is made easy by acting with the objective of co-existence in a multi-cultural society. Every citizen is entitled to peace, security and justice without discrimination. If everyone is to live happily we should be united in building a strong united country. It is our responsibility that we commit ourselves to it.

Let us consider that it is our duty to ensure that the implementation of the great expression in our National Anthem "As children of a single mother," bloom.

Activity

- Inquire about the other ethnic groups living along with you in your region and what their religions are,
- Discuss with your class teacher and invite a priest or a religious leader of another ethnic group for a discussion.
- Why is it important that we learn the main languages used in our country? (Tamil language by the Sinhalese and Sinhala language by the Tamils) Present 05 points.

Through the study of this chapter you will acquire the ability to

- investigate basic economic problems and economic activities,
- explore information about various economic systems,
- analyse the present economic systems in relation to development,
- analyse the influence of globalization on Sri Lanka.

4.1. Basic economic problems and economic activities

Man is subject to various needs and wants when living in a social system. When attempting to satisfy these wants, man has to face various problems. The manner in which each society acts in attempting to resolve these problems is different.

The manner in which societies are organized in order to solve the basic economic problems faced by man is termed an economic system.

You may already be aware of various needs and wants arising when living as a group in a society. Primary essentials for man's existence are called needs. Clothes, housing, food, etc., are examples of needs. They are explained as basic needs.

The above needs are fulfilled by various persons in different ways. Various forms of wants are called needs. Although housing is a basic need, in the fulfilment of this need houses are constructed in various forms such as huts, wattle and daub houses, large houses, condominiums, etc. From the example above, it is clear that they are diverse according to the socio-economic condition of the individual in need.

We know that the wants of individuals are different as much as they are unlimited. But we are also aware that resources for the satisfaction of these wants are limited. Although we need to build a large house, problems arise when we attempt to build it based on requirements such as the land available, finances etc. Therefore, if this unlimited necessity is to be met, with the resources available, it becomes necessary to function in the context of a systematic and scientific methodology.

Activity 4.1

Display on a table human needs and the wants relevant to them.

Basic Economic Problems

We learned earlier that we have to face various problems in endeavouring to satisfy human needs and wants. These problems are common to any economic system. Boundless needs and wants of man and limited resources available to satisfy them, give rise to these problems. We call this a shortage. Because of shortage, selection has to be done when fulfilling wants. Problems that any economic system has to face are called basic economic problems. They can be divided to three main categories.

1. Which, how much of it is to be produced?

It becomes necessary to decide as to which good is to be produced utilizing the resources available. And also, the problem arises as to how much of the selected articles are to be produced. The primary reason for this problem is the availability of a number of alternative uses of the resources.

Since it is not possible to satisfy all the needs and wants of the individual, first of all, he has to decide as to which necessities are to be fulfilled first. This picture shows several alternative decisions that can be taken in this regard. It is according to the manner in which the economy is organized that a decision, as to 'what' "how many items of each are to be produced," can be taken.

Fig 4.1

2. How is it produced?

After solving the problem as to how many units of the goods are to be produced the next economic problem to be faced is regarding how they are to be produced. In this regard two sub – problems need to be faced. They are,

- i What is the technique to be applied?
- ii By which section is the production to be made?

i. What is the technique to be applied?

There are two main techniques employed in production.

- **Capital Intensive**

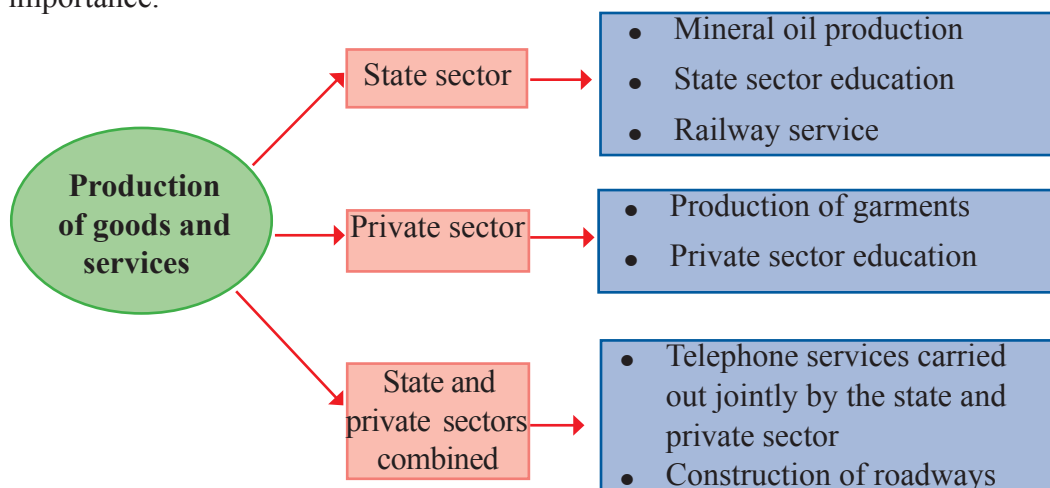
Capital Intensive is the utilization of machinery and other capital equipment extensively for the production of goods. e.g: If machinery is used for agriculture extensively it is called capital intensive agriculture.

- **Labour Intensive**

Labour intensive is the extensive employment of humans in the production of goods. e.g: If a large labour force is used in agriculture it is labour intensive agriculture

ii. Which section does the production?

Deciding as to which sector does the production. There are three sectors where production takes place. As to how production is carried out is of secondary importance.



Various types of business entities such as sole traders, corporations, partnerships, cooperatives have been formed in order to facilitate the production in the modern world.

iii. For whom is it produced?

Deciding about for whom goods and services are produced is meant by this. Society is made up of various groups, in terms of capability to purchase. In this instance it is important as to which of these groups is targeted when producing.

That is, deciding on the consumers among whom the goods and services are to be distributed. Luxury goods which derive a high profit are to be produced for people receiving high incomes? Or otherwise, are essential goods to be produced for those receiving low incomes? Decision taken in this regard can be noted as examples.

Activity 4.1

- Imagine that you own a block of bare land bordering a trunk road. Should you intend to use this land for economic activities? Describe your decision in the light of the economic question above.

Production factors and payments for them

In the satisfaction of human needs, various goods and services are made use of. These goods are of two main types,

- Economic goods – Goods that bear a cost in production and involve payment of a price for use thereof
e.g. The features above can be seen in food, clothes, medicine etc.
- Non-economic goods – Goods that are provided free to us by nature,
e.g. Sunlight; water, air.

There are instances where non – economic goods, goods provided free to us, at times become economic goods.

e.g.

- i. Although we get water free of charge, we have to pay for bottled water.
- ii. We have to pay for sunlight converted to electricity
- iii. A price has to be paid for nitrogen stored and used in vehicles.

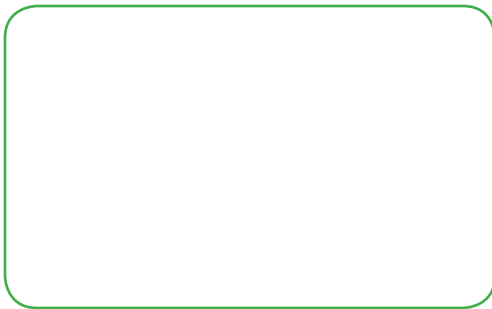


Fig 4.2

1. Land

The earth and all resources related to the earth belong to land. The payment made for this use in the production process is known as rent.



Fig 4.3

2. Labour

The physical and mental energy spent by various individuals in the production of goods and services is called labour. Since labourers, farmers, drivers, etc., spend comparatively more physical energy, it is called physical labour. As doctors, engineers, teachers, etc., spend comparatively more mental energy, it is called mental labour. Payment that is done for labour is called wages.



Fig 4.4

3. Capital

The various equipment and machinery on which man invests for the purpose of production are capital. Machinery, buildings etc., are considered as capital. Payment made with respect to capital is called interest.

4. Entrepreneurship

Production factors are not located in one single place. They lie scattered in different places and among different individuals. The task of labouring to bring together the production factors distributed for the expand production process is called entrepreneurship. Payment made for this is called profits or profit.

Fig 4.5

Activity 4.1

Name five goods utilized for human needs. Show, in the form of a table the production factors used for each such commodity.

Processes taking place in an economy

Various processes take place in an economy. These processes can be divided into three main parts

- Production
- Distribution
- Consumption

1. Production

Production is the process of the alteration of resources so as to facilitate satisfaction of human needs in an economy. The production taking place in an economy can be basically divided into three sections;

- **Agricultural products**

Tea, rubber, coconut, paddy and other types of grain, vegetables, fruits, meat, fish, eggs, etc.

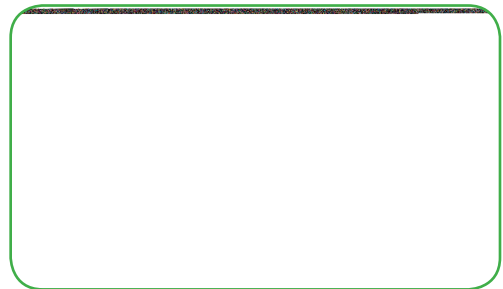


Fig 4.6



Fig 4.7

- **Industrial Products**

Machinery, motor vehicles, garments, stationery, instant food, etc.

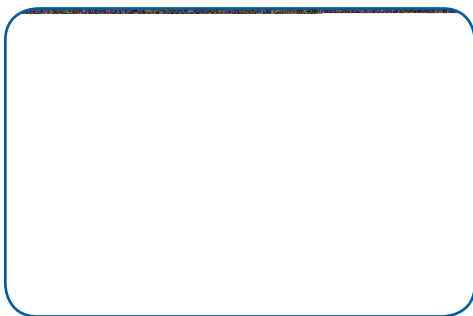


Fig 4.8

- **Services**

Education, health, postal, telecommunication, electricity, transport, etc.

Commodities produced can be divided into three sections according to the manner in which they are made use of.

Consumer goods	Intermediate goods	Capital goods
Goods and services utilized for the wants and needs of individuals are called consumer goods e.g; Food stuff, clothes, medicine etc. used daily	Goods that are utilized for the production of a particular good are called intermediate goods. Special feature of intermediate goods is that they cannot be reused. e.g; Fertilizer used in paddy production, timber used in the manufacture of furniture.	Capital goods are goods utilized directly in the production process. They are also called export goods. Capital goods can be used again and again in the production process. e.g; Machinery, buildings, vehicles etc.

2.Distribution

Distribution is the process of delivering the produced goods to the consumer. In the past, since one person produced the goods required by one's own self, there was no exchange of goods involved. Afterwards, a system of exchange of one type of goods for another type of goods came into being. For example, in the production of paddy, one's excess production was given to another and salt, dry fish, clothes etc., were received in exchange. At present, goods came to be exchanged, through the market with money as the medium. This process is called trade. Trade takes place not only in the interior of a country, but also internationally. Trade can be divided into two main types.

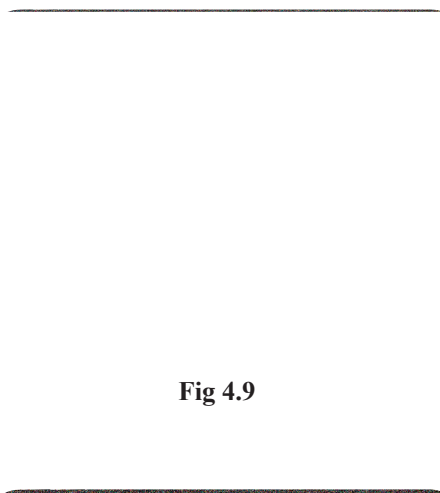


Fig 4.9

- **Wholesale Trade**

Wholesale trade is the process by which the goods produced are supplied to intermediate traders in large stocks, instead of the final consumer. Wholesale trade takes place between the producer and the wholesale trader and the wholesale trader and the retail trader.

- **Retail Trade**

Retail trade is the provision of goods obtained from the producer or the wholesale trader to the consumer. The retail trader is the last person met, when goods flow from the producer to the customer.

Fig 4.10

3. Consumption

Consumption is the fulfillment of human needs and wants using the goods and services produced by an economy. The individual who fulfills his needs in this manner is called a consumer. The goods that directly contribute to the fulfillment of the needs and wants of the individual are called consumer goods. The utilization of food, drink, clothes, vehicles in the fulfilment of one's needs, are examples.

Activity

Complete the table below making use of goods and services you know.

Consumer goods	Intermediate goods	Capital goods

Exploring information on various economic systems

An economic system shows how various organizations deal with the solution of basic economic problems as to what man faces, to what extent, what manner and for whom it is produced. This is called an economic system.

These economic systems are basically divided into three main parts.

1. Capitalist systems
2. Socialist systems
3. Mixed systems

The capitalist economic system

An economic organization where property, mostly owned by the private sector handled with the intention of profit making is called a capitalist economy system. Given below are a few basic qualities of such an economy;

- Existence of a competitive market
- Ownership of production factors owned by the private sector
- Production being profit oriented
- Unequal distribution of profits

In capitalist economic systems an effort is made to attract customers to one's product and retain them through massive publicity campaigns, is quite evident. However, the consumer has the liberty to purchase products of his choice out of the goods available in the market.

Examples of countries where capitalist economic systems prevail are the United States of America, Great Britain, Japan and Australia. However, total capitalist economic systems cannot be seen in the world, where some properties are controlled by the state sector.

Socialist Economic Systems

Economic organizations in which a central planning board is functioning to solve basic economic problems and the property is under common ownership are called a Socialist Economic System. Socialist Economic Systems are also called planned economic systems or state enterprise economic systems.

Given below are a few basic qualities of such an economy;

- Property is state – owned
- The economy is handled by a central planning board
- In the solution of basic economic problems, the focus is on the common good

North Korea and Cuba can be cited as examples of countries where socialist economic systems exist. It is evident that the existing socialist economic systems are undergoing changes.

Mixed Economic Systems

Mixed economic systems contain the features of both capitalist and socialist economic systems. Such economic systems are seen in most of the countries in the world. Sri Lanka is also considered a country with a mixed economic system. Following are some features of a mixed economic system.

- Ownership of factors of production devolved on both state and private sectors.
- Both the state and private sectors take action in the solution of basic economic problems.
- Although the price of commodities depends on the market, there is state intervention.
- Existence of both private and state sector enterprise.
- Intervention of the state in the setting up of welfare activities for the common good.

Activity

- Discuss the advantages and disadvantages of Capitalist Economic Systems.
- Discuss the characteristics of a mixed economy prevailing in the economy of Sri Lanka.
- Through this, explain the advantages and disadvantages that the public has got.

The concept of Market Economy

The Market Economy which operates at present is also called Neo – Liberal Economic system. Under this, while the state does not implement what the private sector can implement, there is scope for the market to function under minimum state intervention.

Countries like Russia, Poland, China, where a Socialist Economic system prevailed are gradually implementing the concept of Market Economy at present.

Given below are several characteristics of the Neo – Liberal Market Economy implemented at present.

- Privatization of state enterprises
- Provision of facilities for prices to be decided on the market situation
- Encouragement of local and foreign private investors
- Relaxation of subsidies and price control methods
- Toleration of private property ownership
- Restriction of state sector intervention in economic matters
- Relaxation of market rules and regulations
- Minimization of administrative rules, regulations and limitations
- Provision on exchange rates to be decided freely and without control

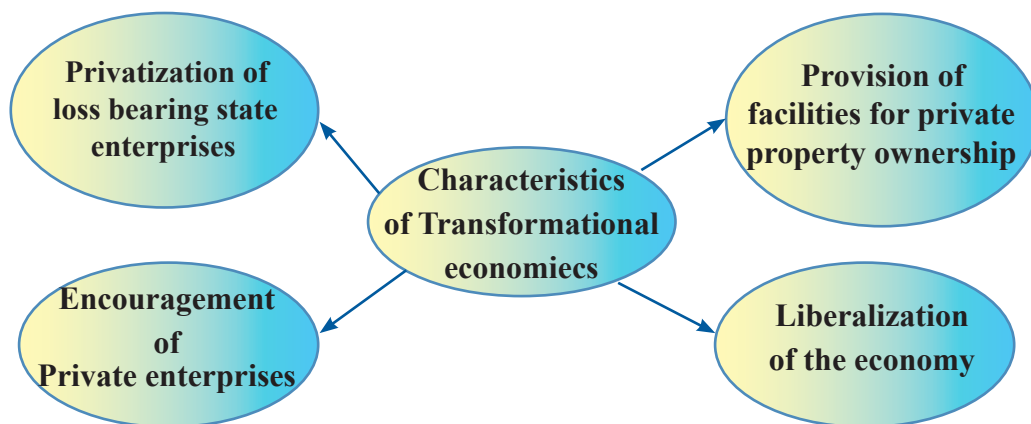
Adverse features also can be identified within the concept of the market economy. Among them is the tendency for the damage caused to other parties, in a market economy, to be ignored. This is called negative externalities. Eg: Environmental pollution in the location of factories, failure to recognize public nuisance etc.

Different forms of the Market Economy

When inquiring about countries where a Market Economic System prevails three main forms are evident.

- i. Greater evidence of characteristics of a capitalist market.
e.g: United States of America, Australia, Singapore, South Korea
- ii. Greater evidence of characteristics of a socialist market.
e.g : North Korea, Cuba
- iii. Economies that are in the process of moving towards a transformation economy or market economy e.g; Countries like Armenia, Azerbaijan, Belarus, Estonia, Georgia, Kazakhstan, Latvia, Lithuania, Russia, Ukraine, Uzbekistan that belonged to USSR (The Union of Soviet Socialist Republics).

Basic characteristics of transformational economies can be identified as follows;



Activity

- Are the basic characteristics of a market economy evident in Sri Lanka? Give reasons.
- List the disadvantages of a market economy.

Influence of Globalization on Sri Lanka

Sri Lanka is a country with a long history. When examining the economic systems that existed from the past to the present day it is clear that Sri Lanka's economy existed in various forms. These economic policies changed from time to time based on the government that controlled the state. After winning freedom from British rule in 1948, it is evident that economic systems with socialist, capitalist and mixed economic features, had existed.

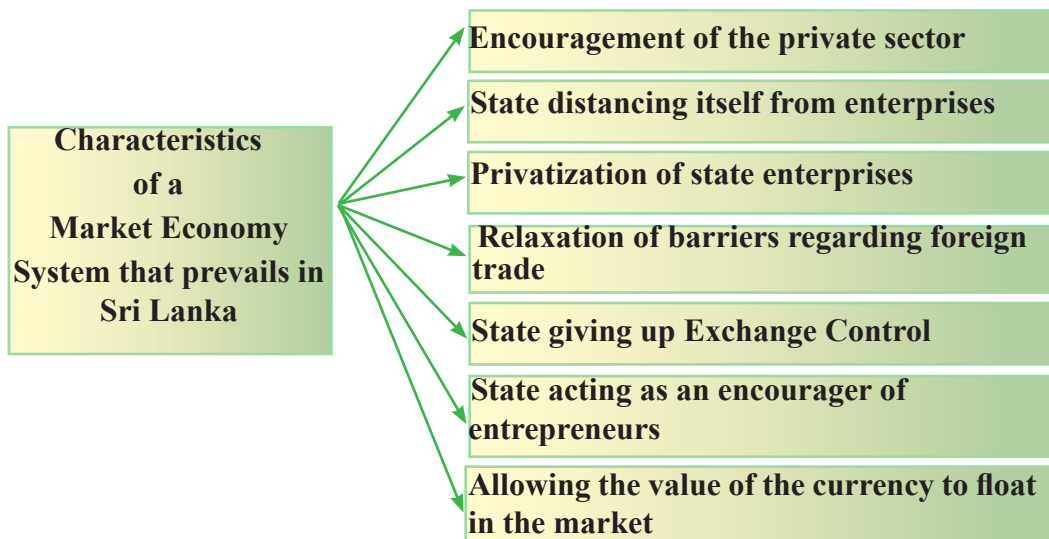
Current economic system of Sri Lanka and Development

The economic system that prevails in Sri Lanka is based on the open economic policy which is a market friendly economy. Even though it possessed features of Socialism prior to 1977, at present it contains features of a market economy.

Under the policy of open economy after 1977, private enterprises are encouraged through various strategies introduced to the economy.

- Provision of various tax concessions to private investors
- Removal of trade barriers (customs duty)
- Minimization of state intervention in the market
- Encouragement of foreign investment
- Privatization of state - property
- Fluctuation of exchange rates
- Introduction of an import export economy
- Opening up of state institutions to the competitive market
- Broadening infrastructural facilities
- Establishment of Free Trade Zones.

It was stated earlier that Sri Lanka too reflects qualities of a Market Economy. Given below are a few of such characteristics.



Introduction to Development

In an economic system, development or growth of various forms can be seen. While some are beneficial to man some have an adverse effect. For example, growth of crime, an increasing number of accidents, can be shown as adverse developments. Accordingly, development that is of a beneficial nature to society is described with the term development in Economics.

Economic growth and development are not the same. Economic growth is the percentage of growth in the gross national production annually. But development is wider and it implies the growth of economic, political, social and humanistic sectors favourable to society.

Some interpretations presented on ‘Development are’:

“Progress in economic, political, social and humanity sectors and the minimization of poverty along with permanent progress, is development.”

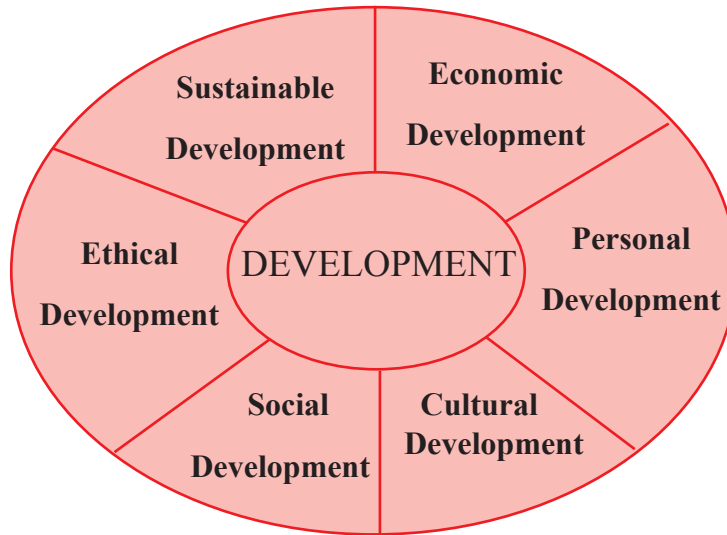
- United Nations Development Report, 2000 -

“The economic and social transformation process taking place through the interaction between complex cultural and environmental factors, is development.”

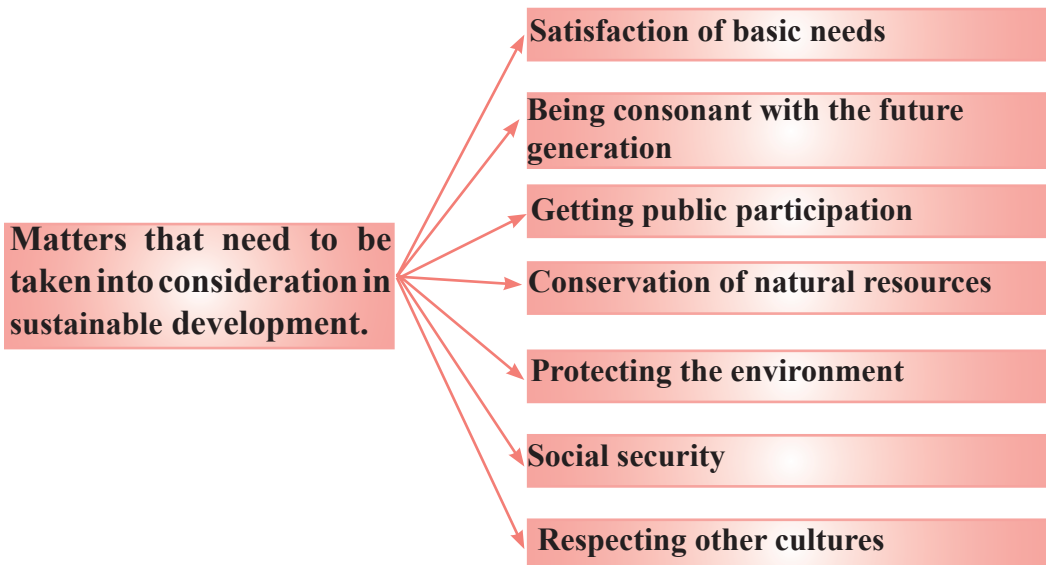
- (www.business dictionary. Com. 2013.08.12) -

It is about sustainable development that much of present – day discussion is focussed on. Sustainable development implies ensuring the security of the resources of the economy for future generations while satisfying current needs with the passage towards development.

It is difficult to give a definite definition to development. This concept implies complete personal and social development. In this regard there are several aspects that should be taken into consideration.



In the development of an economy, it is clear, that not only the economic development but other sections should also be involved in the process. In this instance, what is most important is sustainable development. Sachs, (2004) has noted several basic principles that should be considered in sustainable development.



Activity

- List the points that should be taken into consideration in sustainable development.
- Describe the importance of sustainable development.

At the millennium assembly of the United Nations Organization in 2000 on development, eight Millennium Development Targets were approved.

They are,

1. Eradication of poverty and hunger
2. Acquisition of a common primary education
3. Empowerment of women and gender equality
4. Proportional reduction of infant deaths
5. Development of mental health
6. Suppression of diseases like AIDS and Malaria
7. Assurance of environmental sustainability
8. Initiation of a global relationship for development

Sri Lanka too has accepted in principle the need to move towards development through the achievement of the targets outlined above. It has been accepted as a policy at present to make Sri Lanka as the central point of knowledge in Asia

New development trends in present - day Sri Lanka

In the past the economy of Sri Lanka depended on subsistence agriculture. But with Sri Lanka coming under British rule its economy was gradually transformed into an import - export economy based on plantation crops. Before 1977, state contribution in the areas of agriculture, industry and services was visibly dominant. Attention was also paid to the setting up of export oriented industries utilizing local resources.

When inquiring into modern development trends in Sri Lanka, it is possible to divide the changes that took place after independence into several main stages. The table below shows the special features evident in each period;

Stage	Special features
1948-1960	• Existence of an economic system based on import – export • Both the state and private sectors joining in economic activities • Plantation industry getting priority • Encouragement of a locally dependent agricultural section • Nationalization of private enterprises (After 1956) • Provision of consumer subsidies
1961-1970	• Assumption of a semi – open appearance • Relaxation of exchange regulations • Provision of opportunities to private entrepreneurs • Reduction of food subsidies
1970-1977	• Becoming a closed economy • Commencement of import oriented industries • Introduction of restrictions on export • Imposition of new regulations regarding distribution of essential food items • Implementation of a ration system • Limitation of private land ownership • Encouragement of a local supply agricultural sector • Making exchange control rules more static and regular • Development depending mostly on local resources
1978-1993	• Introduction of open economic policies • Relaxation of export – import limits • Provision of tax relief for foreign investors • Commencement of export – based industries • Restriction of food subsidies • Preferential treatment for the industrial sector over the agriculture sector • Setting up of free trade zones • Implementation of various welfare schemes for the poor • Provision of free uniforms, textbooks, midday meals for education • Privatization of loss – bearing state institutions
1994 - 2004	• Implementation of open economy policies, further • Provision of tax relief for private entrepreneurs • Privatization of state enterprises • Involvement of the private sector in the provision of infrastructural facilities • Restructuring of state institutions • Obtaining international advice on policy making

After 2004 the implementation of an open economic policy is prominent. Nevertheless focus of attention on the agricultural sector and investments were evident. Given below are some special features prominent during this stage.

Colombo Port

Expressway

Fig 4.11

- Stop privatization of state institutions.
- Repossession of privatized state institution by the state.
e.g - Sri Lankan Air ways, Sevanagala Sugar Company, Paper Corporation, Shell Gas co. (present Litro)
- Taking action for the promotion of the local agro economy. e.g: Fertilizer subsidy, Api Vavamu Rata Nagamu programme.
- Development of infrastructural facilities. e.g: construction of Highways, Harbour, construction of the Airport, revamping the Colombo Harbour, construction of power stations.
- Launching various projects for economic development. e.g: Divineguma, Maga Neguma, Gama Neguma, Nagara Alankaranaya, Road Development.
- Speeding up urban development
- Raising living conditions of the poor. e.g: The Samurdi Programme, encouragement of the self – employed, home – garden programmes.
- Popularization of Information Technology. e.g: The Nenasala Programme, Vidatha Resource Centers.
- Implementation of new changes in the field of education. e.g: Introduction of technical subjects to Advanced Level subject stream, establishment of professional and technical universities, the thousand school programme, establishment of ‘technical laboratories’.

Some of the ongoing development activities in Sri Lanka have the following advantages.

Advantages
• Rise in employment opportunities • Rise in foreign exchange earnings • Rise in the standard of living of the people • Speeding up of regional development • Maintenance of high level of economic development • Ability to face world crises • Development of infrastructural facilities • Broadening of new job market • Acquisition of an internationally outstanding position • Ability to maintain peace.

Activity

1. List the various activities implemented in Sri Lanka for development.
2. Explain with examples the benefits that Sri Lanka achieves through these projects.

Gradual decrease in the number of families receiving Samurdhi in Sri Lanka

Year	2005	2006	2007	2008	2009	2010	2011	2012
Number of families	1960664	1916594	1844660	1631133	1600786	1572129	1541619	1515613

Several indices on the development of Sri Lanka

Index	2009	2010	2011	2012
Infant mortality rate	10.0	8.5	8.5	9.4
Birth rate	18.4	17.6	17.6	17.4
Literacy	91.3	91.4	91.9	92.2
Percentage of admission for Primary Education	102	91	97	92
Position of Sri Lanka according to Human Development Index	102	91	97	92

Activity

- Using The Central Bank report, prepare rates important to Sri Lanka apart from the indices above.
- Based on these indices, write a short report about the development of Sri Lanka.

The influence of technological development and globalization on world economy and Sri Lankan economy

Technological progress and globalization

People who lived in isolation tended to make various discoveries by living as a group. With the new industrial revival of Europe new technology too developed gradually. Every sector in the world has been connected based on this scientific and technological progress. This is called a Global Village or Globalization.



Fig 4.12 - Several modern technological equipment

The picture above shows several products that have been created using modern technology. It can be seen that the technological equipment are spread across all sections of industry, communication, trade, education, health and transport.

Along with the progress of communication technology that takes place in countries of the world, the whole world has drawn closer to each other. Thus we can know of any event that occurs anywhere in the world in a moment. The world drawing closer in this manner with technology is generally known as globalization.

The mutual relationship taking place within the economic, political and cultural processes is called globalization. The world economy becoming a single unit can also be expressed as Globalization. Thus economic changes of one country exert influence on other countries.

Given below are several characteristics of globalization.

- Broadening of the world of work
- Broadening of the global market
- Ability to live in any country in the world
- The possibility of working in any country in the world according to one's skills and abilities
- Transfer of industries to countries where cheap labour is available

Just as much as economic reasons, political, social and cultural reasons too influenced the spread of globalization. Developed countries use this concept to politically influence other countries. e.g: Market control, impose sanctions etc. Various forms of cultural intermixing take place as a result of globalization. Similarly, world powers have utilized globalization to impose their domination in the world market. It is also possible that a form of neo – colonialism would spread owing to globalization.

Activity

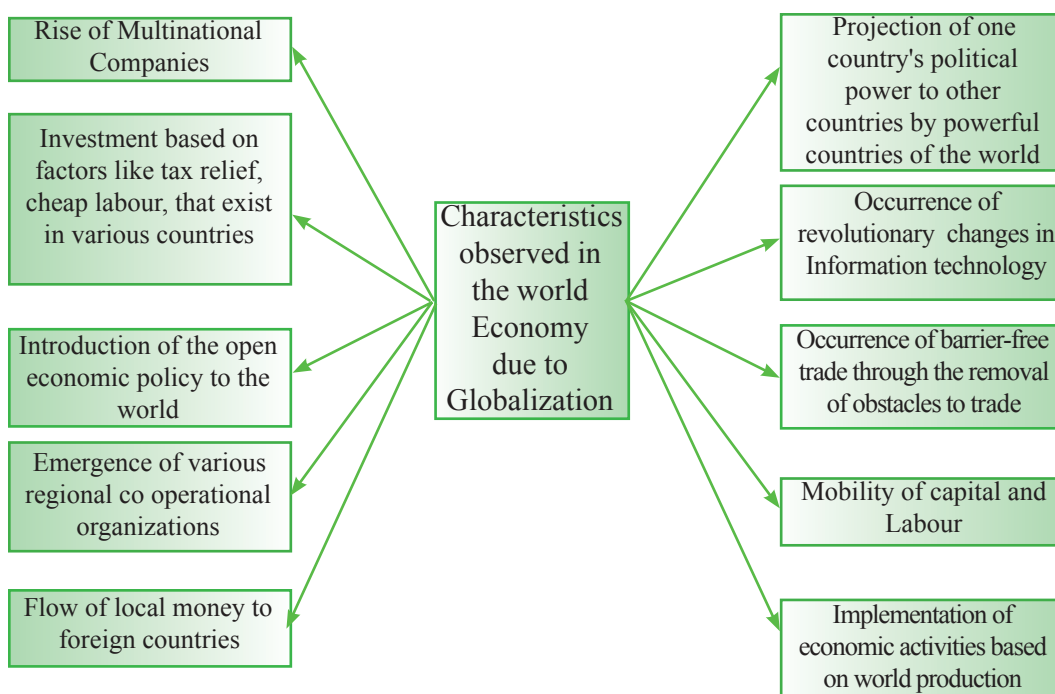
- Collect information on globalization.

The influence of globalization on the world economy

International trade has been subject to various changes within globalization. The view of the European Union is that the entire world should be transformed into a single nation speaking the same language and using the same monetary unit. One example of this is the action taken by the European Union to introduce a common currency unit within its zone.

As stated earlier the endeavour of world powers was the transformation of the entire world to a single economic unit within globalization. Various organizations such as the World Bank, International Monetary Fund, United Nations Organization, Asian Development Bank and World Trade Organization have been set up to promote this effort. However the effort made through these institutions have directly or indirectly influenced other countries.

Characteristics observed in the world Economy consequent to globalization



Through such influence, world powers not only expect to maximize profits but also to establish political stability.

At present the trend of various countries jointly setting up several such organizations and their objectives are shown below.

Organization	Member countries	Objectives
European Union (EU)	Austria, France, Denmark, Belgium, Germany, Finland, Greece, Ireland, Italy, Netherlands, Luxemburg, Portugal, Spain, Sweden Great Britain	• Greater systematization of financial transaction. • Barrier trade Expansion
North America Free Trade Agreement (NAFTA)	United States of America Canada, Mexico	• Free trade
South Asian Preferential Trade Agreement (SAPTA)	Sri Lanka, India, Myanmar, Bangladesh, Bhutan, Nepal, Maldives	• Broadening of Regional trade

Bay of Bengal Initiative for Multi-Sectoral Technical and Economic Cooperation (BIMSTEC)	Bangladesh, India, Myanmar, Thailand, Sri Lanka, Bhutan, Nepal	• Broadening of investment areas like textiles, garments, medicine and information technology. • Encouragement of Governmental and non governmental organizations. • Technological exchange. • Ensure regional co-operation.
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Apart from this, the emergence of world economic groups has also occurred resulting from globalization. e.g - Birth of organizations like G7, G77, G24, G15. The primary objective of setting up these international economic organizations was to take collective action for the resolution of world economic problems and face collectively the pressure brought about by developed countries.

Activity

- Collect information regarding similar world organizations and prepare a booklet.

How globalization influences Sri Lanka

Sri Lanka too is unable to save itself from Globalization. We have to bear the influence of Globalization. As a result of the Open Economic policy implemented after 1977 the influence of globalization has become more and more pronounced. The reason for this is the exposure of production and trade to the world market.

Given below are several positive and negative influences Sri Lanka has had to face on account of globalization.

Positive Influences

1. Influx of foreign investments and modern technology
2. Drop in unemployment resulting from the creation of new job opportunities in the world of work
3. Higher demand for local product factors
4. Progress of technical and service sectors
5. Birth of local products based on the international market
6. Improvement in the state of the balance of payments
7. Diversification of the economy
8. Production of high quality products (Increase in the Efficiency of production and quality of goods)
9. Improvement of local human resources due to influx of foreign experts
10. Broadening of infrastructural facilities necessary for products
11. Possibility of getting maximum benefits of local resources
12. Regional development due to the location of large-scale industries out of the city
13. The possibility of joining up with various regional organizations
14. Exclusion of inefficient industries from the market
15. Allowing the local consumer to obtain high quality goods

Negative Influences

1. Inability of local products to compete with multinational products
2. Rise in environment damage caused by industrial institutions
3. Efflux of foreign exchange dividends as interest and loan instalments to foreign countries
4. Speeding up of brain drain
5. Escalation of the influence brought on by developed countries
6. Local culture being subject to various questionable influences
7. Proliferation of unsuitable economic and consumer patterns in the country

8. Need to depend on foreign loans and aid
9. Need to face world economic differences directly.
10. Problems regarding public welfare because of the state sector is distancing itself from economic matters
11. Need to agree to donors' conditions when obtaining foreign loans
12. Oppression of the poverty stricken public due to the state distancing itself from protectionist strategies such as price control
13. Local resources being subject to exploitation
14. Destruction of the local dependent economy
15. Destruction of local primary industries

Due to the rapid expansion of globalization it is clear that both its advantages as well as its disadvantages have to be faced. It will be possible to minimize the influence of its disadvantage by educating the public.

Activity

1. What changes are evident in Sri Lanka, due to globalization?
2. What are the methodologies adopted by Sri Lanka in order to minimise the negative influence of globalization?
3. Suggest other forms of action that can be taken for the above purpose.
4. Prepare a letter for a wall newspaper on the topic "The influence of globalization on the wellbeing of a multicultural society."

Conflict Resolution in a Democratic Society

Dispute is a term often heard and often spoken in daily usage. It is prevalent in every society. It is the result of diversity. Diversity in human is expressed through disputes. Variety of individual aims needs and aspirations create conflicts. Diversity is based on language, caste, religion and territories. Consequently, conflicts among individuals, individuals and states, states and states occur.

Disputes bring about both destructive and constructive results. In the process of social development, conflicts can be taken as a constructive and a creative force. For example, an unresolved problem or a series of problems is given expression in this manner.

Individual's mind which leads to conflict

A conflict originates due to dissent in the mind of an individual. As a result, the individual is inclined to uncommon behaviour like unrest, tension, sudden anger, intolerance, use of harsh language, unruly behaviour or assault. Unless such conflicting mental conditions are settled soon and if continued it can end in mental illness.

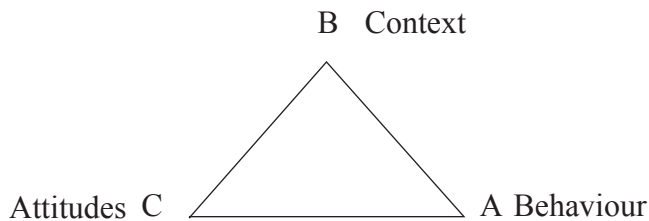
Individuals who evince such behaviour can cause disputes within the family, between families, in the society and within institutions. As it is detrimental to the individual and society, a solution should be sought at the beginning. Since the conflict occurs as a result of the mindset of the individual, the elimination or the minimisation of a conflict can bring about mental peace.

Directions to create mental peace

- Turn to religious activities
- Engage in psychological exercises
- Counselling
- Through observation of natural environment

Basic reasons for conflicts

The triangular struggle conflicts model of Johan Galtung is useful to study about conflicts.

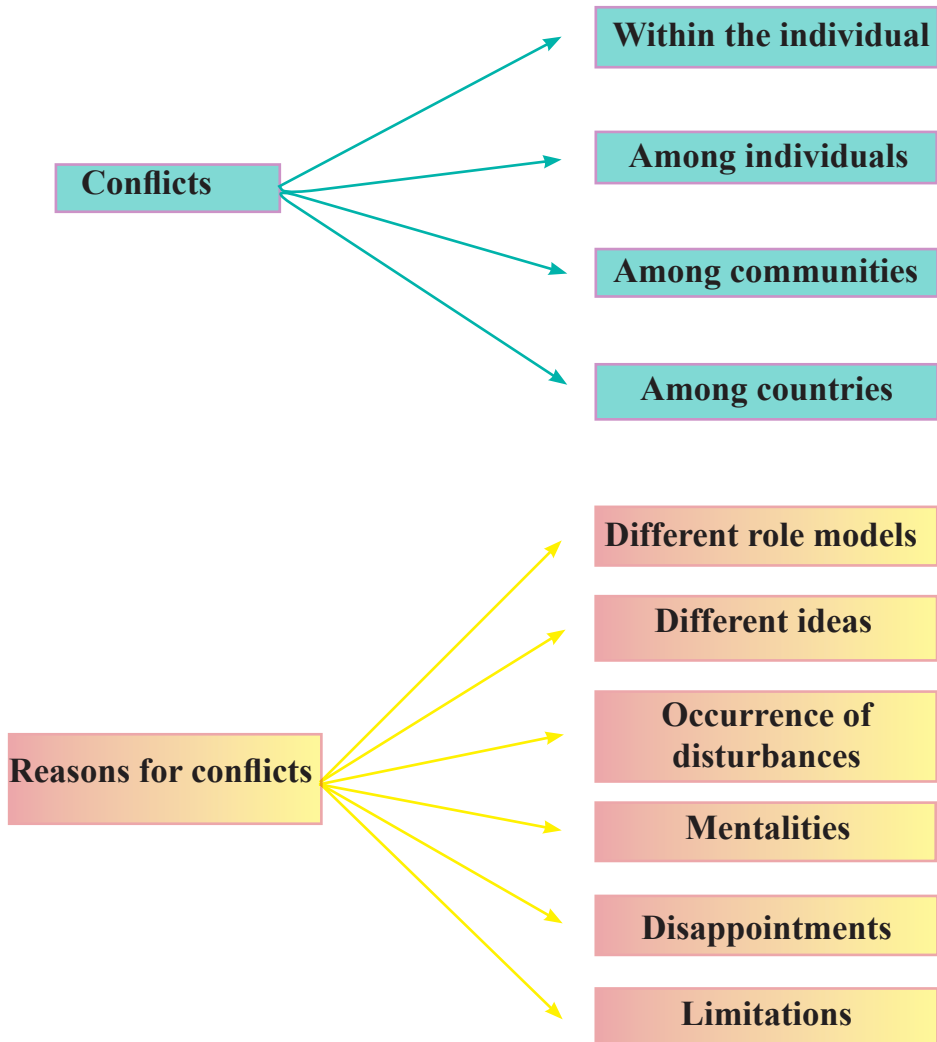


The context here is the background to the conflict. Conflicts occur with the connections based on the desires of the relevant parties. Hence the context explains the social, economic and political environment responsible for the conflict.

Attitudes are the psychological factors on which conflicts develop. It is due to true or wrong beliefs of both the parties. Violent conflicts are caused by misconceptions among participants. Mental states such as fear, suspicion, disappointment and hatred do occur in minds. The final result is the conflict due to aggressive attitudes.

Behaviour related to conflicts is multifaced. It can be helpful or forceful. Forceful behaviour can be aggressive or destructive.

Parties involved in conflicts



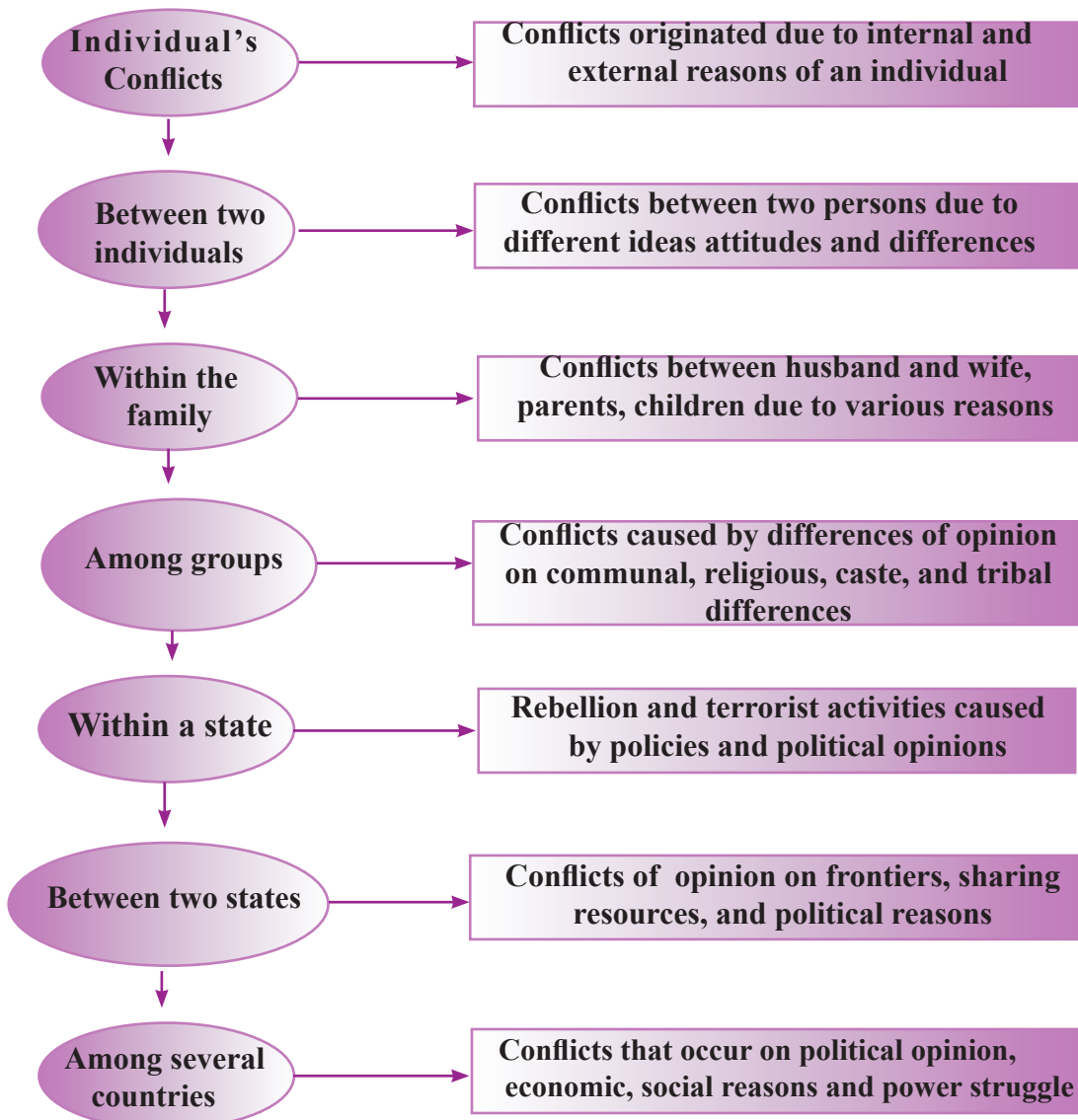
Activity

- Remind conflict situation faced by you
- What are the causes of that conflict?
- What are the ill - effects you got out of that?
- Discuss the action you would have taken to avoid it.

Types of conflicts

Conflicts can be identified by their nature when studying about the types of conflicts. According to the following diagram they can be studied broadly under two main areas, such as,

- Internal conflicts
- International conflicts



Internal Conflicts

Personal and social conflicts among the people of a country can be categorised as internal conflicts. These can be categorised as universal and intricate conflicts. For example, the conflicts which are of national level or wider level can be called universal conflicts. The conflicts among communities, religions, and national trade unions can be cited as examples. Examples of intricate conflicts are the mental conflicts caused in an individual due to disappointment, family conflicts, economic problems, domestic violence and land disputes.

Not only individual level reasons but national level reasons also affect these conflicts. It is obvious that individual conflicts cannot be solved without solving national level conflicts and vice versa. In solving conflicts, individual and national level relations have to be taken into serious consideration.

International Conflicts

Conflicts between countries are called international conflicts. They are of two kinds.

- Conflicts of opinions
- Military conflicts

Political, social and economic differences create differences of opinion and they are called conflicts of opinions. The conceptual conflict of capitalist and socialist camps, western and eastern cultures and Christian countries of the west and the middle eastern Islamic countries can be cited as examples.

Resources, economic benefits and expansion of powers are the reasons behind international conflicts.

The final outcome of an international conflict is war. This situation is to be seen at global and territorial level and between countries. The 1st and 2nd world wars were extremely gruesome. Millions of human lives were destroyed and the loss of property and environmental damage was terrible.



Fig 5.1 - -- First world war



Fig 5.2 - -- Second world war

Though there is no wars of global level, there are many wars between several countries. The wars between Israel and Palestine, Indo Pakistan, the war against Syria, Afghanistan, Libya, Turkey by America and the European community can be indicated as examples.

Fig 5.3 - A part of Gaza Strip

Fig 5.4 - An instance of Libyan war

Fig 5.5 - Dangers of Syrian war

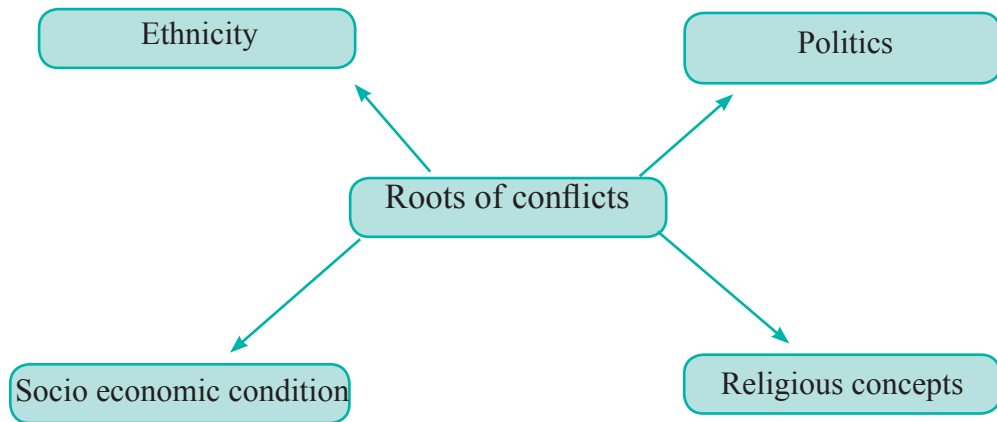
Activity

Collect and present the following information on an ongoing war.

- Countries engaged in the war
- Reasons for the escalation of war
- Actions taken to make peace

Roots of Conflicts

Communal feeling, political ideologies, religious ideologies, socio - economic problems can be cited as main roots of conflicts. It is represented by the diagram below.



Ethnicity

- Caste e.g. Tribal conflicts between Tutsis and Hutus of Rwanda.
- Tribes
- Physical nature - Apartheid in South Africa
- Social strata

Political

- Frontiers e.g (Israel - Palestine conflict)
- Expansion of power (western capitalists' conflict with Russia)

Social economic status

- Poverty (conflict between Somalia and Ethiopia)
- Market (e.g: imposition of economic embargo)
- Resources (conflict in the Middle East)

Social economic status

- Sectoral conflicts (Irish war)
- Between religions (War of the cross)

Activity

- Select one root from the above chart and explain it using an example from an ongoing war.
- Prepare a poster depicting the terror of war and necessity of peace.

Methods of conflict resolution

The resentment and contradictory ideas of individuals primarily create disputes. Such situations can be settled at the outset, avoiding conflict. For this individuals and various parties can follow many methods.

Democratic action can be cited as the best method in conflict resolution. Taking decisions, listening to the voice of both parties is meant by this. This is important in the case of an individual, family, nation or international area as well.

Being insensitive to a conflict of opinion which exists in an individual or among a group of people can lead to a dispute. By ensuring a good communication with the relevant parties the eruption of violence can be prevented.

Conflict resolution is important because the results of conflicts can be unhealthy for the individual as well as society. Conflicts in society appear in different shapes and levels. Understanding the present situation of a conflict is of paramount importance in conflict resolution. As such, various suitable methods need to be studied. The important methods which can be used are discussion, bargaining and conciliation, mediation, peaceful settlement, arbitration, inquiry and counselling.

Discussion

The basic methods of conflict resolution is discussion. The parties who were instrumental in the conflict find a resolution after coming to a table directly or by way of third party discussions. The parties succeed in coming to "win- win" situations.

Aspects of discussion

- Coming to a settlement by way of discussions
- Personal or confidential environment
- Instant solutions
- Minimum cost
- Informal structure
- "Win - win" for both parties

Opportunities where discussion can be utilised

- Personal disputes
- Family disputes
- Property disputes
- Institutional disputes
- Inter - institution disputes
- Disputes within and among countries

Activity

- Select an occasional disputable situation in your classroom / school and present how you would make use of the discussion method to solve it using a role play.

Bargaining and amicable settlement

This method is in use to solve democratically the problems that arise between employee and employer. The related parties come to a resolution on their demands. In this process the parties demonstrate their opposition whenever they disagree. Ultimately both the parties agree on certain decisions considering their demands and resolve the conflicts.

In industrial conflicts, estate labour conflicts, trade unions, discussion and bargaining methods are used.

Aspects of bargaining

- A team work
- Existence of (employer - employee) both parties
- Discussion at the discussion table
- Mutual agreement
- Formal process
- Related to service conditions and wages
- Bargaining commences from demands
- Bargaining ends in an agreement

Activity

- Explain the special features of bargaining.
- Explain the advantages of settling disputes of employer - employee by way of bargaining.

Mediation

Mediation is used in helping two persons to communicate or two countries to settle a dispute when the discussion method has failed. This is a mediation sans war. Professional mediators, specialists in conflict resolution, the relevant parties of the conflict and external parties can be used as mediators.

Facts to be considered when selecting a mediator

- An unbiased individual accepted by both parties
- Who has a thorough knowledge of the conflict
- A person who does not force his own decisions and solutions on the parties
- Who does not influence either party
- Who directs parties towards a solution acceptable to both parties
- Meets both parties separately in instances where they cannot meet directly and communicate between both parties
- Directs towards flexible solutions and arrives at win -win solutions

Qualities of a mediator

- A good listener
- Fidelity
- Dedication
- Honesty
- Unbiased nature
- Moderation
- Observation and Creativity

Opportunities to use mediation

- Family disputes (e.g. Domestic violence)
- Consumer and trade disputes (e.g. Regarding goods produced below the standard)
- Disputes between tenants and the house owners. (e.g. Regarding removal of tenants)
- Employers - employee disputes (e.g. Regarding wages and overtime payments)
- Adult boards (e.g. Regarding disputes between old parents and children)
- Conflicts between nations
- Conflicts among countries

Activity

- Mention the particular features of the mediation process.
- Explain the uses of mediation in resolving problems.
- Select a conflict situation in your classroom/ school and be a mediator for it. Explain what action you have taken.

Conciliation

Conciliation is the intervention or mediation in a conflict or disagreement. It is not the final settlement. Conciliator may be an individual or a group. It is meant to settle disputes by discussing with the opposite sides. Conciliation is useful when both parties are in neither win nor lose positions. The conciliator may take part to settle the dispute on a request by one of the parties or someone else.

Role of the conciliator

- Induce the opposite parties to a discussion
- Take the initiative to explain the underlying reasons for the conflict
- Raise a direct or indirect discussion regarding the reasons of the conflict
- Try to reduce the gap and the differences between the opposite parties
- Suggest a programme to enter into agreements

The Conciliatory Council has been established as a legal entity by the Ministry of Justice to conciliate. It directs settlement of conflicting situations, minor offences, family disputes before taking them to courts. Many such conciliatory councils have been established at regional level.

Opportunities for using conciliation

- Settlement of family disputes
- Settle labour disputes
- Settle disputes among groups of people
- Disputes concerning public property
- Settlement of minor offences (insult, warning and damage to property)

Activity

- Participate in a session of a conciliatory board in your area.
- Prepare a report after studying the process thoroughly.

Arbitration

Arbitration is the process which is useful in settling a dispute by a mediator with the consent of the parties. The special person who is selected for the purpose is the arbitrator. The arbitrator listens to the problems and questions and finally the correct party is explained. Although both parties are supposed to find solutions, the outstanding feature is the win - lose situation.

Qualities of an arbitrator

- Gives good hearing
- Unbiased stand
- Balanced presence
- Takes correct decisions
- Creativity and observation
- Ability to explain clearly and meaningfully
- Equity

Chances of using arbitration

- Settling industrial disputes
- Disputes of wages and rights
- Employer disputes
- Disciplinary inquiries
- Disputes over finance

Activity

- Act out a role play to portray the settlement of disputes by way of arbitration.
- Discuss the advantages and disadvantages of solving disputes through arbitration.

Inquiry

Inquiry is the traditional method of conflict resolution. A court of law or a parallel body advises the relevant parties to the conflict to come to a settlement at first and if it fails the dispute is settled by legal inquiry. The verdict of the judiciary is final and the loser can appeal to a higher court of law.

Aspects of Inquiry

- Both parties cannot refrain from coming to the discussion
- The defendant should appear in court
- Giving evidence, legal inquiry is formal
- Both parties have freedom to give evidence, argue and cross examine
- Verdict is given according to the law
- The court decision is final and both parties are bound by it
- Ability to appeal
- The loser should pay the costs of litigation



Fig 5.6 - Aluthkade Courts Complex

Activity

- Discuss the advantages and the disadvantages of the legal process in conflict resolution.
- Participate in a court of law to observe the process of solving disputes in your area.

Building a compromise

Both parties of the conflict are brought to a compromise by a third party in this process. Both parties sign an agreement to certify the settlement of the dispute and control instances of conflicts. The particular feature is the contribution of a third party to observe the implementation of the agreement.

Chances of settling disputes by compromise

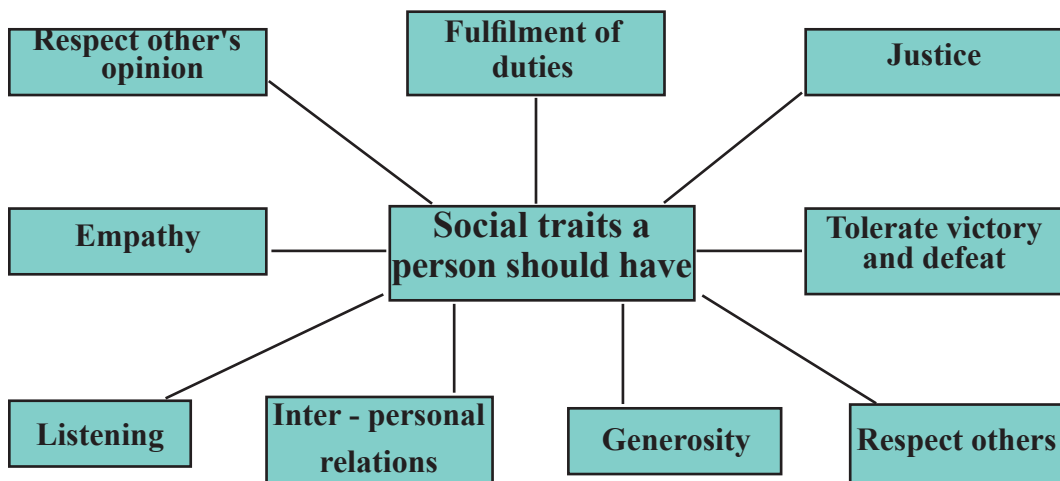
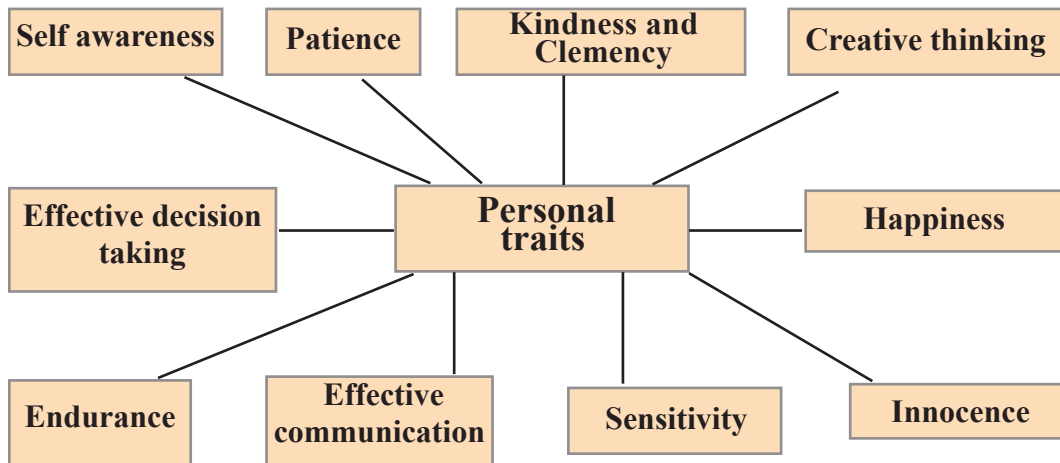
- Family disputes
- Employer - Employee disputes
- Disputes with neighbours
- Disputes between institutions
- Disputes among peers

Counselling

Counselling is the facilitation and direction given by a third party to settle the conflicts between two parties or among individuals. Here, directing the parties for alternative settlements, making them aware of the consequences and directing them to mitigate the conflicts are done.

Qualities a citizen should possess in settling disputes

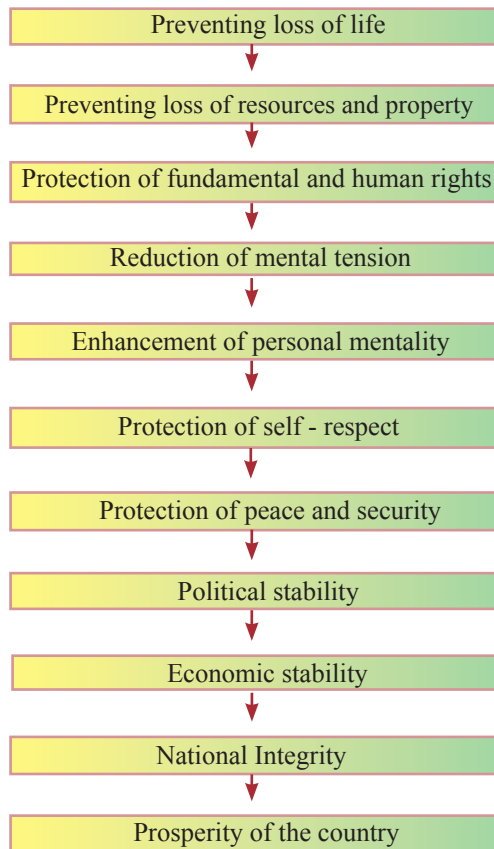
There are a lot of qualities to be developed personally and socially to overcome the challenges aimed at a person, facing disputes is one such challenge. The following qualities given in the chart should be developed.



Activity

- Breath well with your eyes closed for a moment
- Recollect the best qualities within you
- Be happy about them
- Draw a creative picture about the qualities within you and exhibit it

- Advantages of peaceful resolution of conflicts



According to the above chart, conflict brings personal and social deterioration. Therefore, avoidance of conflicts is vital for the development of people and the country. Accordingly, individual peace brings peace to the family and peace in the family brings peace to the country which ultimately bring about world peace.

Activity

- Propose your own list of suggestions to control the provocative situations within you.
- Suggest things one could do to prevent disturbance to the others in the family, school, and society.